

THE NCA HUB

Examination Preparation

CANADIAN FAMILY LAW

PRACTICE QUESTIONS & MODEL ANSWERS

12 Examination-Grade Questions | Complete IRAC Model Answers | Examiner's Guides

Revised January 2026 Syllabus | Exam Date: April 13, 2026

Companion to: NCA Family Law Strategic Notes & Exam Templates

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HOW TO USE THESE PRACTICE QUESTIONS

These 12 practice questions are calibrated to the format, complexity, and mark allocation of actual NCA Canadian Family Law examination questions. The questions mirror the five-question, 100-mark sample exam structure and are designed to be attempted under timed conditions before consulting the model answers.

How to Practice

1. Attempt each question under timed exam conditions. Use the suggested time (approximately 1.8 minutes per mark). Write in full sentences — the NCA exam requires full-sentence answers, not point form. Cite specific statutory provisions (e.g., 'Divorce Act s.16(1)') and case names.
2. Compare your answer to the model answer. Focus on: Did you identify the correct statute? Did you cite the specific section number? Did you apply each rule to the specific facts? Did you address the calculation correctly (for child support and equalization questions)?
3. Identify gaps and return to the Strategic Notes and Templates. Each gap represents a topic to review before the exam.
4. Repeat until your answer matches the model — especially on the highest-frequency topics: jurisdiction, parenting (best interests + relocation), child support calculations, equalization of NFP, and domestic contracts.

Key Exam Parameters

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices permitted.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Exam Date	April 13, 2026 (Morning and Afternoon sittings)
Mark Rate	Approximately 1.8 minutes per mark. A 30-mark question = 54 minutes.
Key Skill	Statute → section number → case → application to specific facts. Every rule statement must include the section number AND the leading case. Description without application earns zero.

Table of Contents — 12 Practice Questions

Q	TOPIC	MARKS	TIME
1	Jurisdiction — Divorce Act s.3 + CLRA s.22 (Dunmore 2025)	10	18 min
2	Parenting — Best Interests + Relocation (Barendregt 2022) + ADR	30	54 min
3	Child Support — Multiple Obligor + s.7 Expenses + High Income	20	36 min
4	Domestic Contracts — Setting Aside + Miglin + Fresh Support	20	36 min
5	Equalization of NFP — Full Calculation + Excluded Property + Matrimonial Home	20	36 min
6	Spousal Support — Moge + Bracklow + SSAG Without-Child Formula	25	45 min
7	Relocation — Barendregt 2022 + Burden of Proof + Best Interests	20	36 min
8	Cohabitants — Kerr v Baranow + Unjust Enrichment + FLA s.29 Support	15	27 min
9	Family Violence + Parenting — Coercive Control + s.16(3)(j) + s.16(4)	20	36 min

10	Variation — Spousal Support (LMP v LS) + Child Support + Parenting	15	27 min
11	Multi-Issue — Jurisdiction + Child Support + Spousal Support + SSAG	30	54 min
12	Full Exam Simulation — All Issues (NFP + Parenting + Support + Domestic Contracts)	30	54 min

⚠ WARNING — CRITICAL — STATE THE STATUTE AND SECTION FIRST

The NCA Family Law exam markers look for precise statutory citations before anything else. 'Under s.16(1) of the Divorce Act, the court shall take into consideration ONLY the best interests of the child as the sole criterion' earns marks. 'Under family law legislation, courts consider the child's best interests' earns zero. Every rule statement in every answer must begin with the statute name and section number. This single habit is worth 15-20 marks across the exam.

QUESTION 1 OF 12

Primary Topic	Jurisdiction — Divorce Act s.3 and CLRA s.22
Secondary Topics	Transfer under s.6; habitual residence; Dunmore 2025 SCC 20
Difficulty	Medium
Suggested Time	18 Minutes
Mark Value	10 Marks

FACT PATTERN

Nadia Osei and David Park were married in Ontario in 2018. They have one child, Leo, age 6. In February 2025, following a period of tension, Nadia moved with Leo from their family home in Toronto to her parents' home in Winnipeg, Manitoba. Nadia and David have been living separate and apart since February 1, 2025.

In August 2025 — six months after the separation — Nadia commences a divorce proceeding in the Manitoba Court of Queen's Bench, seeking a divorce, sole decision-making responsibility for Leo, and child support. David, who continues to reside in Toronto and has regular parenting time with Leo on alternating weekends (with Leo travelling to Winnipeg), brings an application to transfer the proceedings to the Ontario Superior Court of Justice. David argues that (a) Manitoba lacks jurisdiction because Nadia has not yet been ordinarily resident in Manitoba for one year; and (b) even if Manitoba has jurisdiction, the proceedings should be transferred to Ontario because Leo's primary connection is there — Leo attended school in Toronto until February 2025 and David's family (Leo's grandparents, cousins) are all in Ontario.

Separately, Nadia's parents (Leo's maternal grandparents) have filed an application in Manitoba under Manitoba family legislation seeking contact with Leo, who spends most of his time at their Winnipeg home.

YOUR TASK:

- (a) Has Manitoba acquired jurisdiction to hear Nadia's divorce proceedings under s.3(1) of the Divorce Act? When could Nadia have filed her petition? (4 marks)

6. (b) Should the proceedings be transferred to Ontario under s.6 of the Divorce Act? Apply the relevant test. (4 marks)
7. (c) What jurisdictional framework governs the grandparents' application for contact with Leo? (2 marks)

EXAMINER'S GUIDE

Issues tested: DA s.3(1) one-year ordinary residence (and when a petition can be filed before the year expires); DA s.6 transfer (best interests for forum); CLRA s.22 habitual residence (*Dunmore v Mehralian* 2025 SCC 20) for the grandparents' contact application.

Cases MUST cite: Divorce Act ss.3(1), 6(1), 6(2); CLRA s.22; *Dunmore v Mehralian*, 2025 SCC 20.

Time allocation: (a) 7 min | (b) 7 min | (c) 4 min.

MODEL ANSWER — QUESTION 1

Part (a) — Manitoba Jurisdiction Under DA s.3(1) (4 marks)

ISSUE

The issue is whether Manitoba has jurisdiction to hear Nadia's divorce proceeding, specifically whether she has satisfied the one-year ordinary residence requirement under Divorce Act s.3(1).

RULE

Divorce Act s.3(1): A court in a province has jurisdiction to hear a divorce proceeding if EITHER SPOUSE has been ordinarily resident in that province for at least ONE YEAR immediately before the proceedings are commenced. IMPORTANT: The one-year ordinary residence requirement must be satisfied at the time the proceeding is COMMENCED — not at the time of judgment. A petition may be filed before the one-year anniversary; the divorce judgment simply cannot issue until the one-year period is complete.

APPLICATION — DA s.3(1) — Nadia's Ordinary Residence

Because Nadia commenced her divorce proceeding in August 2025 — only six months after her move to Winnipeg in February 2025 — she has NOT been ordinarily resident in Manitoba for one year as required by DA s.3(1). Manitoba therefore lacks jurisdiction under s.3(1) at the time the proceeding was commenced.

David remains ordinarily resident in Ontario (he never left), and he has been there for more than one year. Accordingly, Ontario HAS jurisdiction under s.3(1) — David's one-year ordinary residence in Ontario satisfies the requirement.

WHEN COULD NADIA FILE IN MANITOBA? Nadia could file her petition in Manitoba on or after February 1, 2025 (the first day of her separation), as the Divorce Act permits filing on any day. However, the one-year residency period must be complete by the date the divorce judgment is granted. Nadia would need to be ordinarily resident in Manitoba until at least February 1, 2026 for a Manitoba court to grant the divorce judgment.

CONCLUSION

Manitoba does NOT currently have jurisdiction to hear Nadia's divorce proceeding under DA s.3(1) — she has only been ordinarily resident there for six months. Ontario DOES have jurisdiction because David has been ordinarily resident there for more than one year. Nadia may refile in Manitoba once she has been ordinarily resident there for one year (February 2026), or proceed in Ontario immediately.

Part (b) — Transfer to Ontario Under DA s.6 (4 marks)

ISSUE

The issue is whether the divorce proceedings should be transferred from Manitoba to Ontario under Divorce Act s.6(1).

RULE

Divorce Act s.6(1): A court may transfer proceedings to another province where corollary relief affecting a child is sought, if it is in the best interests of the child to do so. S.6(2): the court considers where the child is most closely connected, where most evidence about the child is located, and — primarily — the BEST INTERESTS OF THE CHILD.

APPLICATION — s.6 Transfer Analysis

NOTE: Because Manitoba lacks s.3(1) jurisdiction as established in Part (a), the transfer analysis under s.6 is secondary — Manitoba would need to acquire jurisdiction before it could transfer to Ontario. However, assuming for completeness that proceedings were validly commenced:

DAVID'S TRANSFER APPLICATION: David argues Leo's closest connections are in Ontario. This argument has force: Leo lived in Ontario for the first five years of his life; he attended school there until February 2025; his paternal grandparents and extended family are there; all of David's parenting time infrastructure is in Ontario.

NADIA'S RESPONSE: Leo has lived in Winnipeg with Nadia since February 2025 — six months. Leo's maternal grandparents (his primary caregivers in Winnipeg) are in Manitoba. Evidence about Leo's current school, current healthcare, and current daily life is now in Manitoba.

BEST INTERESTS ANALYSIS: At six years of age, Leo's most important connections include: his primary caregiver (Nadia, in Manitoba); his school and daily life (now in Manitoba); and his relationship with David and the Ontario family. A court balancing these factors would likely find that Ontario remains Leo's closest forum for the parenting evidence — his formative years were there, David is there, and the parenting dispute involves Manitoba connections that are only six months old. Transfer to Ontario is likely appropriate.

CONCLUSION

On a proper s.6 analysis, the proceedings should be transferred to Ontario. Leo's longest and deepest connections are in Ontario (school, family, formative care), and the evidence about his parenting needs is most substantially available there. Ontario is the more appropriate forum for the corollary relief proceedings respecting Leo.

Part (c) — Grandparents' Contact Application (2 marks)**ISSUE**

The issue is what jurisdictional framework governs the grandparents' application for contact with Leo.

RULE

Because the grandparents are applying for CONTACT (not parenting) with Leo and are NOT spouses of each other, the Divorce Act does not apply to their application. The applicable statute is provincial family legislation — in Manitoba, the equivalent of Ontario's CLRA. The jurisdiction to make a contact order depends on where Leo is HABITUALLY RESIDENT — applying the 'at home' test from *Dunmore v Mehralian*, 2025 SCC 20 (which interpreted CLRA s.22 but states a principle applicable across equivalent provincial legislation).

APPLICATION — Grandparents' Application — Jurisdictional Framework

Because the maternal grandparents seek contact with Leo under provincial family legislation (not the Divorce Act), the relevant jurisdictional question is whether Manitoba courts have jurisdiction over Leo — specifically whether Leo is habitually resident in Manitoba.

Applying Dunmore's 'at home' test: Leo has lived in Manitoba since February 2025. He attends school there. He lives with his maternal grandparents as his primary caregivers. At the time the grandparents filed, Leo had been 'at home' in Manitoba for several months — this suggests Manitoba habitually resident status, even if Ontario remains his pre-move connection.

Manitoba courts likely have jurisdiction over the contact application on the basis of Leo's current habitual residence in Manitoba.

CONCLUSION

The grandparents' contact application is governed by Manitoba provincial family legislation (equivalent to Ontario's CLRA). The jurisdictional basis is Leo's habitual residence — applying the 'at home' test from *Dunmore v Mehralian* 2025 SCC 20 to the Manitoba statute. Given that Leo has lived in Manitoba since February 2025, Manitoba courts likely have jurisdiction over his habitual residence and the contact application.

QUESTION 2 OF 12

Primary Topic	Parenting — Best Interests + Relocation + ADR
Secondary Topics	s.16(3) all factors; Barendregt 2022 SCC 22; burden of proof; ADR processes
Difficulty	Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Marcus and Elena Petrov divorced in 2022 after a 12-year marriage. They have two children: Zara, age 9, and Nico, age 12. The divorce order includes a parenting arrangement under the Divorce Act providing for primary residence with Elena and regular parenting time with Marcus (every other weekend plus one weekday evening per week — approximately 20% of annual parenting time). Both parties share decision-making responsibility for major decisions.

Since the divorce, Marcus has been consistently involved — he attends school events, coaches Nico's soccer team, and the children speak warmly of time with their father. However, the relationship between Marcus and Elena has been acrimonious. Elena's lawyer has filed multiple complaints about Marcus's conduct, and Marcus has alleged that Elena frequently cancels his parenting time without reason. Both allegations were investigated and found to be unsubstantiated.

In March 2026, Elena informs Marcus that she has accepted a position as Regional Director for a national company, requiring her to relocate with the children from Toronto to Vancouver. The position represents a \$40,000 annual salary increase. Elena proposes that Marcus receive extended parenting time during school holidays (Christmas, March break, and 8 weeks in summer), and that daily video calls be established. She gives Marcus written notice on March 1, 2026 and proposes the move for June 1, 2026.

Nico (age 12) has told the family mediator that he does NOT want to move — he is in his final year of elementary school, has his best friends in Toronto, and plays on a competitive soccer team with a regional championship in May. Zara (age 9) says she will miss Daddy but trusts her mom.

Marcus opposes the relocation and brings an urgent application in the Ontario Superior Court of

Justice.

YOUR TASK:

8. (a) Should the court permit Elena to relocate to Vancouver with the children? Apply the full relocation framework including the applicable burden of proof and best interests analysis. (20 marks)
9. (b) Describe the diverse dispute resolution processes that could have been used by Marcus and Elena to resolve their family law disputes. (10 marks)

EXAMINER'S GUIDE

Issues: Divorce Act ss.16.9 (notice), 16.92-16.93 (burden of proof); Barendregt v Grebliunas 2022 SCC 22; s.16(3) best interests factors — especially (c) willingness, (d) history of care, (e) voice of child, (f) cultural connections, (j) family violence; ADR: mediation (Bouvier 2021 SCC 54 privilege), arbitration (DA ss.7-7.7), collaborative law.

Cases MUST cite: Barendregt v Grebliunas, 2022 SCC 22; Divorce Act ss.16.9, 16.92(2), 16.93; DA s.16(1), s.16(3); Bouvier 2021 SCC 54.

Time: (a) 36 min | (b) 18 min.

MODEL ANSWER — QUESTION 2

Part (a) — Relocation to Vancouver (20 marks)

ISSUE

The issue is whether Elena should be permitted to relocate to Vancouver with Zara and Nico under Divorce Act ss.16.7-16.96, having regard to the framework in Barendregt v Grebliunas 2022 SCC 22 and the best interests of the children.

RULE

S.16.7 — Relocation is a change in residence likely to have a significant impact on the children's relationship with another person with parenting time. S.16.9 — 60 days' written notice required, including proposed date, location, and proposed post-relocation parenting time. Elena gave notice on March 1 for a June 1 move = 92 days — notice is proper. S.16.93 — BURDEN OF PROOF: Where the status quo provides for the children to spend the MAJORITY of time with the relocating parent (here: Elena has 80% of annual parenting time), the OPPOSING PARENT (Marcus) bears the burden of proving relocation is NOT in the children's best interests. S.16.92(2): The court SHALL NOT consider whether Elena would relocate without the children. Barendregt v Grebliunas 2022 SCC 22: Best interests analysis governs. No presumption for or against relocation. Child-centred, fact-specific inquiry. Courts must realistically assess post-relocation contact arrangements.

APPLICATION — Notice — s.16.9

Because Elena gave Marcus written notice on March 1, 2026, proposing a June 1, 2026 move — 92 days before the proposed date — the 60-day notice requirement under s.16.9 is satisfied. The notice included the location (Vancouver) and a proposed post-relocation parenting time arrangement. The procedural requirements are met.

APPLICATION — Burden of Proof — s.16.93

Because the existing parenting order provides Elena with approximately 80% of annual parenting time (every other weekend + one weekday evening for Marcus = approximately 20% for Marcus), the children spend the vast majority of their time with Elena. Under s.16.93, MARCUS bears the burden of

proving that the relocation is NOT in the children's best interests. Elena does not have to prove the relocation IS beneficial — Marcus must prove it is not.

APPLICATION — Best Interests Analysis — s.16(3) Factors (Barendregt)

FACTOR (a) — Children's Needs: Zara (9) and Nico (12) are at different developmental stages. Nico is in his final year of elementary school with established friendships and competitive soccer involvement — stability in his current environment is important right now. Zara is more adaptable. Both children need continuity of meaningful relationships with each parent.

FACTOR (b) — Quality of Relationships: Both children have strong relationships with Elena (primary caregiver, 80% of time) and meaningful relationships with Marcus (consistent involvement, coaches Nico's soccer, attends school events). The quality of both relationships is positive — this is not a case where one parent is absent.

FACTOR (c) — Willingness to Support: The acrimonious history between Marcus and Elena raises concerns about factor (c). Both parties have made complaints against each other, all unsubstantiated. Neither parent's willingness to support the children's relationship with the other is exemplary. However, Marcus has maintained consistent involvement despite conflict. The proposed post-relocation plan must be assessed for whether it genuinely supports the children's relationship with Marcus.

FACTOR (d) — History of Care: Elena has been the primary caregiver for the children since the divorce in 2022. She is the parent with whom the children primarily reside and with whom they have spent 80% of their time. This history strongly supports Elena as the parent who should continue in the primary care role.

FACTOR (e) — Voice of the Child: Nico (12) has clearly and specifically expressed that he does NOT want to move — citing specific reasons (final year of elementary school, best friends, soccer championship in May). At age 12, Nico's views are mature enough to carry significant weight (SK v DG 2022 ABQB 425). Zara (9) is more equivocal. Nico's strong and reasoned preference against relocation is a significant factor.

REASONS FOR RELOCATION (s.16.92(1)(a)): Elena's reasons — a \$40,000 salary increase and career advancement — are legitimate personal reasons. However, these reasons are only relevant to the extent they serve the children's best interests (Barendregt). A parent's improved income benefits the children, but the salary increase alone does not justify the disruption of relocation.

POST-RELOCATION CONTACT PLAN — REALISTIC ASSESSMENT: Elena proposes extended holiday parenting time (Christmas, March break, 8 weeks summer) plus daily video calls. The court must realistically assess this: (a) Holiday-based contact reduces the frequency of meaningful in-person relationship to a few annual visits; (b) Nico specifically plays competitive soccer with a regional championship in May — March break parenting time may conflict with this; (c) Daily video calls are valuable but cannot replicate the weekly in-person relationship Marcus currently has; (d) The cost and logistics of travel from Vancouver to Toronto for a 9 and 12-year-old is significant. The proposed contact plan, while not unreasonable on paper, substantially reduces the quality and quantity of Marcus and the children's relationship.

APPLICATION — Weighing the Factors — Should Relocation Be Permitted?

Factors favouring relocation: Elena is the primary caregiver (factor d); her improved income benefits the children; she has provided stability in the primary care role since 2022; Zara is more accepting of the move.

Factors against relocation: Nico's clear, specific, and reasoned objection (factor e — age 12, carries significant weight); disruption to Nico's final year of elementary school and competitive soccer

championship; substantial reduction in Marcus's meaningful parenting time (from weekly in-person contact to holiday-based visits); the proposed contact plan does not realistically maintain the children's relationship with Marcus at its current quality.

MARCUS'S BURDEN: Has Marcus established that the relocation is NOT in the children's best interests? Given Nico's strong objection, the disruption to his specific current activities, and the significant reduction in in-person contact with Marcus — which has been meaningful and consistent — Marcus has made a substantial case. The balance of factors weighs against permitting the relocation at this specific time.

COURT'S LIKELY CONCLUSION: The relocation should not be permitted at this time. Nico's reasoned preference, the disruption to his current school year and soccer championship, and the inadequacy of the proposed contact plan to preserve the children's meaningful relationship with Marcus justify refusing the application. Elena may re-apply after Nico's school year concludes, with a revised contact plan that provides more meaningful in-person time.

CONCLUSION

The relocation application should be DENIED. Although Marcus bears the burden under s.16.93, he has discharged it. The best interests analysis under Barendregt and the s.16(3) factors weigh against relocation at this time: Nico's clear and reasoned objection at age 12 carries significant weight; the disruption to his final elementary school year and soccer championship is concrete and specific; and the proposed post-relocation contact plan does not realistically preserve the meaningful weekly relationship Marcus has built with both children. Elena may reapply after June 2026 with an improved post-relocation parenting plan.

Part (b) — ADR Processes (10 marks)

ISSUE

The issue is what alternative dispute resolution processes were available to Marcus and Elena to resolve their family law disputes.

RULE

Divorce Act s.7.7(1): Every counsel in a divorce proceeding has a duty to discuss with their client the possibility of reconciliation, negotiation, and the availability of mediation and other dispute resolution options. Three core ADR processes apply to family law disputes: (1) **MEDIATION:** A neutral third-party mediator facilitates negotiation. No binding decision — the mediator helps the parties reach their OWN agreement. Statutory basis: DA s.7 (duty of counsel to discuss); FLA s.3 (court may refer to mediation); CLRA s.31 (court may appoint mediator). **PRIVILEGE:** Communications in family mediation are protected by privilege — Association de médiation familiale du Québec v Bouvier, 2021 SCC 54. Any agreement reached must be reduced to a separation agreement to be enforceable. (2) **ARBITRATION:** A private arbitrator (lawyer or former judge) hears evidence and makes a **BINDING DECISION** (arbitral award). Governed by DA ss.7-7.7(3) and Ontario family arbitration legislation. Mandatory safeguards: both parties must receive ILA before signing; arbitrator must be a qualified family law lawyer or former judge; appeal rights on questions of law. (3) **COLLABORATIVE FAMILY LAW:** Both parties retain collaborative lawyers. All four sign a participation agreement committing to settle outside court. If process fails, collaborative lawyers withdraw — new litigation lawyers must be retained, creating strong incentive to settle. Not statutory — governed by the participation agreement.

APPLICATION — Application to Marcus and Elena's Disputes

MEDIATION: Given the acrimonious relationship, mediation by a skilled family mediator could have helped Marcus and Elena resolve the parenting complaints and the relocation dispute without court involvement. Mediation is particularly valuable for co-parenting disputes because the mediator can help the parties focus on the children's needs rather than litigation positions. The Bouvier privilege

would have protected frank disclosures during the mediation from use in subsequent proceedings.

ARBITRATION: For the relocation dispute specifically — where a binding decision is needed — arbitration would have provided a faster, private alternative to court. A specialized family law arbitrator with experience in relocation cases could have heard the matter more quickly than the court's schedule permits and produced a binding award addressing the specific circumstances.

COLLABORATIVE LAW: At the time of the divorce in 2022, the parties could have engaged collaborative lawyers to structure the initial parenting agreement in a way that anticipated future disputes (including relocation clauses). A well-structured parenting plan negotiated through the collaborative process might have included dispute resolution mechanisms for future disagreements, reducing the litigation that followed.

PARENTING COORDINATOR: In high-conflict co-parenting situations like Marcus and Elena's, a court could appoint a parenting coordinator to resolve minor day-to-day disputes without requiring court applications. This would have addressed the complaints about cancelled parenting time without escalating to litigation.

CONCLUSION

The following ADR processes were available to Marcus and Elena: (1) Family mediation (facilitated negotiation, Bouvier privilege, requires agreement to be enforceable); (2) Arbitration (binding private adjudication under DA ss.7-7.7, procedural safeguards required); (3) Collaborative family law (settlement-focused, participation agreement, lawyers withdraw if it fails). Each process provides an alternative to adversarial court proceedings and, in co-parenting disputes, can help preserve the ongoing co-parenting relationship that is essential for the children's wellbeing.

QUESTION 3 OF 12

Primary Topic	Child Support — Multiple Obligors, s.7 Expenses, High Income
Secondary Topics	Chartier, Wright v Zaver, CSG ss.3/4/7; Auer 2024 SCC 36
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Sofia Andrade and her former spouse, Rodrigo Andrade, divorced in 2023. They have one biological child together, Mia, age 8, who lives primarily with Sofia. Rodrigo pays child support of \$700/month under a court order based on his income of \$65,000/year.

Sofia has been in a common-law relationship with Derek Yuen for the past four years. Derek earns \$180,000/year and has treated Mia as his own child since the relationship began — he takes Mia to school, attends parent-teacher meetings, pays for Mia's extracurricular activities, and Mia calls Derek 'Dad.' After Sofia and Derek's recent separation, Derek tells Sofia he 'wants nothing more to do with Mia' and refuses to pay child support.

Mia also attends a private school at a cost of \$18,000 per year. The school provides specialized programming for children with learning differences — Mia has a diagnosis of dyslexia and ADHD. Sofia earns \$50,000/year.

YOUR TASK:

10. (a) Does Derek have an obligation to pay child support for Mia? Apply the relevant legal test. (7 marks)
11. (b) How should child support be apportioned between Rodrigo and Derek? (7 marks)
12. (c) Is Mia's private school tuition a section 7 special or extraordinary expense? If so, how is it apportioned? (6 marks)

EXAMINER'S GUIDE

Issues: Chartier (standing in place of parent; cannot unilaterally withdraw); Wright v Zaver (multiple obligors apportionment, CSG s.5); CSG s.7(1)(f) (primary school — extraordinary given learning differences). Also note: Derek's income is \$180,000 → CSG s.4 high income analysis for portion above \$150,000.

Cases MUST cite: Chartier v Chartier [1999] 1 SCR 242; Wright v Zaver [2002] ONCA; CSG ss.3, 4, 5, 7; Auer v Auer 2024 SCC 36.

Time: (a) 13 min | (b) 13 min | (c) 10 min.

MODEL ANSWER — QUESTION 3**Part (a) — Derek's Obligation Under Chartier (7 marks)****ISSUE**

The issue is whether Derek Yuen, as Sofia's former common-law partner, has an obligation to pay child support for Mia on the basis that he stood in the place of a parent.

RULE

Divorce Act s.2(2): A 'child of the marriage' includes a child for whom a spouse stands in the PLACE OF A PARENT. Chartier v Chartier [1999] 1 SCR 242: A person stands in the place of a parent when they have established a PARENT-LIKE RELATIONSHIP with the child — treating the child as their own. Factors: daily caregiving responsibilities, financial contributions, the child's perception of the relationship (does the child regard this person as a parent?), participation in major decisions. CRITICAL: Once a person has stood in the place of a parent, they CANNOT unilaterally withdraw from that role after separation. The obligation to support continues.

APPLICATION — Chartier Analysis — Did Derek Stand in the Place of a Parent?

DAILY CAREGIVING: Because Derek took Mia to school, attended parent-teacher meetings, and was involved in Mia's daily care over a four-year relationship, he assumed day-to-day parenting responsibilities — a core indicator of standing in the place of a parent.

FINANCIAL CONTRIBUTION: Because Derek paid for Mia's extracurricular activities during the relationship, he made financial contributions to Mia's upbringing beyond what a household member would typically provide.

CHILD'S PERCEPTION: Because Mia calls Derek 'Dad' — the most direct possible expression that a child views a person as their parent — the child's perception factor is clearly established.

PARTICIPATION IN DECISIONS: Because Derek attended parent-teacher meetings and was involved in Mia's schooling, he participated in significant decisions for Mia's life.

CANNOT WITHDRAW: Derek's statement that he 'wants nothing more to do with Mia' has no legal effect. Once Derek established a parent-like relationship with Mia, he cannot unilaterally terminate the support obligation upon separation from Sofia. The obligation is to the CHILD — not to Sofia.

CONCLUSION

Derek stood in the place of a parent with respect to Mia under Chartier. His consistent four-year involvement as Mia's daily caregiver, his financial contributions, and — most compellingly — Mia's own identification of Derek as 'Dad' establish the parent-like relationship. Derek's attempted withdrawal is legally ineffective. He owes child support for Mia.

Part (b) — Apportionment Between Rodrigo and Derek (7 marks)

ISSUE

The issue is how child support should be apportioned between Rodrigo (biological father, income \$65,000) and Derek (step-parent who stood in place of a parent, income \$180,000) to avoid double recovery.

RULE

CSG s.5: Where a person against whom a child support order is sought stands in the place of a parent to a child, the court may award an amount it considers appropriate having regard to the Guidelines AND any other person's legal duty to support the child — recognizing the existence of the biological parent's obligation. CSG s.4: Where the step-parent's income exceeds \$150,000, the table amount at \$150,000 is the minimum; the court has discretion for income above that threshold. *Wright v Zaver* [2002] ONCA: Courts apportion the obligation between biological parent and step-parent — double recovery is not permitted. The biological parent's obligation is typically primary; the step-parent's obligation supplements it. *Auer v Auer* 2024 SCC 36: Children should benefit from both parents' income within their relative means.

APPLICATION — Calculate Each Obligor's Table Amount

RODRIGO (biological parent, income \$65,000, one child in Ontario): Table amount at \$65,000 for 1 child in Ontario ≈ \$600/month (the existing court order is \$700/month — the discrepancy may reflect an older order; for this analysis use the current table amount at \$65,000).

DEREK (step-parent, income \$180,000, one child in Ontario): Income exceeds \$150,000 threshold → CSG s.4 applies. Table amount at \$150,000 for 1 child in Ontario ≈ \$1,200/month (minimum — the floor under s.4). For income above \$150,000 (\$30,000 excess), the court exercises s.4(b) discretion. Full table at \$180,000 ≈ \$1,400/month. Using the table range: Derek's s.4 amount is approximately \$1,200-\$1,400/month.

APPLICATION — Apportionment — *Wright v Zaver* and CSG s.5

Because double recovery is impermissible, the court does not simply add both table amounts (\$600 + \$1,300 = \$1,900/month). Instead:

RODRIGO: As the biological father, Rodrigo bears the PRIMARY support obligation. His table amount of approximately \$600/month continues as his obligation.

DEREK: As a step-parent whose obligation supplements the biological parent's, Derek's s.5 amount is reduced from the full table. Having regard to: (a) Rodrigo's existing primary obligation of ~\$600/month; (b) Derek's high income and ability to contribute meaningfully; (c) the four-year parent-like relationship; (d) Mia's needs and expected standard of living with a parent earning \$180,000 — the court would likely set Derek's obligation at approximately \$700-\$800/month (supplementing Rodrigo's \$600 to bring total support to approximately \$1,200-\$1,400/month, consistent with what Mia would receive if she lived primarily with a single parent earning \$180,000).

CONCLUSION

Child support is apportioned between the two obligors: Rodrigo shall pay approximately \$600/month (full table amount at \$65,000) as the primary obligor; Derek shall pay approximately \$700-800/month under CSG s.5, as the supplementary obligor having regard to the biological parent's primary obligation. Total support to Sofia: approximately \$1,300-\$1,400/month. Double recovery is avoided.

Part (c) — Private School as Section 7 Expense (6 marks)**ISSUE**

The issue is whether Mia's private school tuition of \$18,000/year qualifies as a special or extraordinary expense under CSG s.7(1)(f), and how it is apportioned.

RULE

CSG s.7(1)(f): The court may order a contribution to expenses for a child's EDUCATION at a primary or secondary school that is extraordinary having regard to the child's needs and the means of the spouses and the family's pre-separation standard of living. CSG s.7(2): The parents share the NET ANNUAL COST in PROPORTION TO THEIR INCOMES (not 50/50).

APPLICATION — Does the Private School Qualify? — s.7(1)(f)

Because Mia has been diagnosed with dyslexia and ADHD and the private school provides SPECIALIZED PROGRAMMING for children with learning differences — programming not available in the regular public school system — the tuition is NOT simply a preference for private over public education. It is a specialized therapeutic and educational intervention required by Mia's specific learning needs.

Courts have consistently held that private school tuition is extraordinary under s.7(1)(f) where it is necessitated by the child's special needs — as distinct from private school chosen for prestige or preference. Because Mia's learning differences create a specific educational need that the specialized school addresses, the tuition qualifies as an extraordinary expense under s.7(1)(f).

APPLICATION — Proportional Apportionment — CSG s.7(2)

For the s.7 apportionment, the relevant incomes are those of the parents with support obligations — here, both Rodrigo and Derek are obligors. Using all three parents' incomes for the s.7 calculation (Sofia, Rodrigo, and Derek):

Combined income: Sofia \$50,000 + Rodrigo \$65,000 + Derek \$180,000 = \$295,000.

Net annual cost: \$18,000 (assuming no applicable subsidies or tax credits — apply deductions if provided in the facts).

Sofia's share: $\$50,000 / \$295,000 = 16.9\% \times \$18,000 = \$3,042/\text{year}$ (\$254/month)

Rodrigo's share: $\$65,000 / \$295,000 = 22.0\% \times \$18,000 = \$3,960/\text{year}$ (\$330/month)

Derek's share: $\$180,000 / \$295,000 = 61.0\% \times \$18,000 = \$10,980/\text{year}$ (\$915/month)

NOTE: Derek's high income means he bears a substantial portion of the s.7 expense. This is consistent with Auer v Auer 2024 (children should benefit from both parents' income) — Mia is entitled to a standard of education that reflects Derek's ability to contribute.

CONCLUSION

Mia's private school tuition of \$18,000/year qualifies as a s.7(1)(f) special or extraordinary expense because it is necessitated by her diagnosed learning differences and the specialized programming is not available in the public system. The net annual cost of \$18,000 is shared in proportion to the combined income of Sofia, Rodrigo, and Derek: Sofia contributes \$254/month; Rodrigo contributes \$330/month; Derek contributes \$915/month.

QUESTION 4 OF 12**Primary Topic**

Domestic Contracts — FLA s.56(4) + Miglin + Fresh Spousal Support

Secondary Topics

Setting aside; Miglin two-stage; Moge compensatory; SSAG without-child

	formula
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Vincent Dupont is a family law lawyer. His wife, Celine, has a high school education and worked as a part-time retail associate during their 14-year marriage, earning approximately \$28,000/year. The couple has no children. Vincent earns \$250,000/year.

When the parties separated in January 2026, Vincent prepared a separation agreement himself. The agreement: (1) divided property such that Vincent retained all property in his sole name (comprising an RRSP of \$400,000, a pension with an estimated value of \$300,000, and a portfolio of investments worth \$200,000) and Celine retained the jointly owned matrimonial home (worth \$600,000 with a \$200,000 mortgage — net equity \$400,000); and (2) provided that Celine waived all rights to spousal support.

Vincent presented the agreement to Celine and told her: 'This is fair — you get the house, I keep my work assets. You should sign this.' Celine asked if she should get a lawyer. Vincent replied: 'That's not necessary — I'm a lawyer, I know what's fair.' Celine signed the agreement without receiving independent legal advice. She also signed a clause stating she 'expressly waives financial disclosure' and confirming she understood the agreement.

Celine now seeks to set aside the agreement and claims spousal support.

YOUR TASK:

13. (a) Should the separation agreement be set aside under FLA s.56(4)? (8 marks)
14. (b) Applying the Miglin test, should the spousal support waiver be overridden? (7 marks)
15. (c) If the court overrides the spousal support waiver, what amount of spousal support should be awarded? Apply the SSAG without-child formula. (5 marks)

EXAMINER'S GUIDE

Issues: FLA s.56(4) — all three grounds (disclosure, understanding, contract law duress/undue influence); Miglin two-stage — Stage 1: no ILA, power imbalance (Vincent is a family law lawyer), waiver of disclosure; Stage 2: assess whether current circumstances depart radically from anticipation. Moge (14-year marriage, career sacrifice). SSAG without-child calculation with \$250,000 and \$28,000 incomes.

Cases MUST cite: FLA s.56(4); Miglin v Miglin [2003] 1 SCR 303; Moge v Moge [1992]; Divorce Act s.15.2(6); Bruker v Marcovitz [2007] (for contractual obligations generally).

Time: (a) 14 min | (b) 13 min | (c) 9 min.

MODEL ANSWER — QUESTION 4**Part (a) — Setting Aside Under FLA s.56(4) (8 marks)****ISSUE**

The issue is whether the separation agreement between Vincent and Celine should be set aside under FLA s.56(4).

RULE

FLA s.56(4): A court may set aside a domestic contract if: (a) a party failed to disclose significant assets or debts; (b) a party did not understand the nature or consequences of the contract; (c) otherwise in accordance with the law of contract (duress, undue influence, unconscionability).

APPLICATION — Ground (a) — Failure to Disclose

Because Celine 'expressly waived' financial disclosure, she does not know the precise value of Vincent's RRSP, pension, or investment portfolio. The waiver of disclosure does not cure the failure — where a party lacks the information necessary to make an informed decision, the fact that they signed a waiver of disclosure does not mean they understood what they were giving up. Vincent's RRSP (\$400,000), pension (\$300,000), and investments (\$200,000) = \$900,000 in assets that Celine waived disclosure on. This is a significant non-disclosure of significant assets. Ground (a) is made out.

APPLICATION — Ground (b) — No Understanding of Nature or Consequences

Because Celine (high school education, retail associate) received no independent legal advice, she signed an agreement prepared by a family law lawyer — her husband — without having any legal professional explain the rights she was waiving. The specific consequences she did not understand include: (a) her right to equalization of net family property under the FLA — Vincent's \$900,000 in assets would typically generate a significant equalization payment; (b) her right to spousal support after a 14-year marriage with significant career sacrifice; (c) the actuarial value of Vincent's pension. Vincent's assurance that 'this is fair' and 'I know what's fair' does not constitute genuine independent advice — it is the self-serving statement of the drafter. Ground (b) is strongly made out.

APPLICATION — Ground (c) — Undue Influence and Unconscionability

Because Vincent is a family law lawyer who drafted the agreement himself and actively discouraged Celine from seeking independent legal advice — telling her it was 'not necessary' — he occupied a position of dominance and used that position to procure Celine's signature. This constitutes undue influence under contract law principles: Vincent's professional expertise created an imbalance of power that he exploited.

Additionally, the agreement is facially unconscionable. Vincent retains \$900,000 in financial assets; Celine retains a home with net equity of \$400,000. Without the equalization calculation, it appears that the agreement produces a significantly imbalanced result — Vincent's assets (\$900,000) substantially exceed Celine's (\$400,000 net equity). Furthermore, Celine entirely waived spousal support after a 14-year marriage. Ground (c) is made out.

CONCLUSION

The separation agreement should be set aside under FLA s.56(4) on all three grounds: (a) failure to disclose the value of \$900,000 in significant assets; (b) Celine's lack of understanding of the nature and consequences of the agreement, particularly the equalization and support rights she waived, without ILA; (c) undue influence — Vincent exploited his professional expertise and position of dominance to procure Celine's signature. The court should set aside the agreement in its entirety and conduct a fresh analysis of both equalization and support.

Part (b) — Miglin Test for the Spousal Support Waiver (7 marks)

ISSUE

The issue is whether the spousal support waiver in the separation agreement should be overridden applying the Miglin v Miglin [2003] 1 SCR 303 two-stage test.

RULE

Miglin two-stage test: Stage 1 — was the agreement entered into in fair circumstances (ILA, disclosure, no power imbalance, compliance with Divorce Act s.15.2(6) objectives at time of contracting)? Stage 2 — has there been a radical change in circumstances not within the parties' reasonable contemplation?

APPLICATION — Stage 1 — Circumstances at Contracting

INDEPENDENT LEGAL ADVICE: Celine received no ILA. Vincent is a family law lawyer who drafted the agreement and specifically discouraged Celine from seeking advice. The absence of ILA is a critical Stage 1 deficiency.

FINANCIAL DISCLOSURE: Celine waived financial disclosure. She signed without knowing the value of Vincent's assets — she could not make an informed assessment of whether the agreement was fair.

POWER IMBALANCE: The power imbalance here is stark — Vincent is a family law lawyer who knows exactly what rights Celine was waiving, while Celine had no equivalent knowledge or professional advice.

COMPLIANCE WITH s.15.2(6): The spousal support waiver, on these facts, does not substantially comply with the s.15.2(6) objectives. After a 14-year marriage where Celine earned \$28,000/year while Vincent earned \$250,000/year, a complete waiver of spousal support fails to: recognize the economic advantages and disadvantages arising from the marriage (s.15.2(6)(a)); and does nothing to relieve Celine's economic hardship (s.15.2(6)(c)).

Stage 1 FAILS. The agreement was not entered into in fair circumstances. The court should give the spousal support waiver little or no weight.

APPLICATION — Stage 2 — Current Compliance with Divorce Act Objectives

Even if Stage 1 were somehow satisfied (which it is not), Stage 2 would also be engaged. Celine's current circumstances (income of \$28,000, significant income gap with Vincent at \$250,000) are the product of 14 years of marriage with career sacrifice. There has been no radical change — circumstances are exactly as they were when the agreement was signed. The support waiver continues to be unjust.

Stage 2 FAILS as well — the agreement does not substantially comply with the Divorce Act objectives under current circumstances.

CONCLUSION

The spousal support waiver in the separation agreement should be overridden. The Miglin test fails at both stages: Stage 1 — the agreement was not entered into in fair circumstances (no ILA, no disclosure, significant power imbalance); Stage 2 — the agreement does not substantially comply with the Divorce Act s.15.2(6) objectives. A fresh spousal support analysis under Moge and the SSAG is required.

Part (c) — Fresh Spousal Support — SSAG Calculation (5 marks)**ISSUE**

The issue is what spousal support Vincent should pay Celine, applying Moge and the SSAG without-child formula.

RULE

Moge v Moge [1992]: Compensatory support for economic disadvantage caused by the marriage — causal connection to career sacrifice established by 14-year marriage with earnings disparity. SSAG without-child formula: $1.5\%-2\% \times \text{gross income differential} \times \text{years}; \text{duration } 0.5-1 \times \text{years}.$

APPLICATION — Moge Entitlement + SSAG Calculation

ENTITLEMENT (Moge): Because Celine earned \$28,000/year throughout a 14-year marriage while supporting a household that allowed Vincent to develop a highly lucrative legal career — and because this income disparity reflects the economic consequences of the marital roles assumed — compensatory support is clearly warranted under Moge.

SSAG WITHOUT-CHILD FORMULA:

Gross income differential: $\$250,000 - \$28,000 = \$222,000/\text{year}$

LOW END: $1.5\% \times \$222,000 \times 14 \text{ years} = \$46,620/\text{year} = \$3,885/\text{month}$

HIGH END: $2\% \times \$222,000 \times 14 \text{ years} = \$62,160/\text{year} = \$5,180/\text{month}$

CAP CHECK: $50\% \times \$222,000 = \$111,000/\text{year} = \$9,250/\text{month}$ — our range is well within the cap.

SSAG QUANTUM RANGE: \$3,885 to \$5,180 per month

DURATION:

LOW END: $0.5 \times 14 \text{ years} = 7 \text{ years}$

HIGH END: $1 \times 14 \text{ years} = 14 \text{ years}$

RULE OF 65 CHECK: If Vincent's age + 14 years ≥ 65 , indefinite support may be appropriate.

SSAG DURATION RANGE: 7 to 14 years (or potentially indefinite if rule of 65 applies)

POSITION WITHIN RANGE: Given the 14-year marriage, significant income disparity, and Celine's limited career development, an award in the mid-to-upper range is appropriate. An award of approximately \$4,500/month for 12-14 years reflects the compensatory purpose of the support.

CONCLUSION

Applying Moge v Moge and the SSAG without-child formula: Vincent shall pay Celine spousal support of approximately \$4,500/month for 12-14 years. The gross income differential of \$222,000 produces an SSAG range of \$3,885 to \$5,180/month; duration of 7-14 years. The mid-upper range reflects the 14-year marriage and Celine's career sacrifice. The support waiver in the separation agreement is overridden as a result of the Miglin analysis.

QUESTION 5 OF 12

Primary Topic	Equalization of Net Family Property — Full Calculation
Secondary Topics	FLA ss.4-5; excluded property; matrimonial home trap; pension; s.5(6)
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Pierre and Monique Fontaine married on June 1, 2005. They separated on June 1, 2025 — exactly 20 years of marriage. Monique has applied for equalization of their net family properties under the Family Law Act.

AT THE DATE OF MARRIAGE (June 1, 2005):

Pierre owned: a car worth \$12,000; a savings account with \$8,000. Pierre had a student loan of \$15,000.

Monique owned: no assets and no debts.

AT THE DATE OF SEPARATION (valuation date — June 1, 2025):

PIERRE'S ASSETS:

- The matrimonial home (jointly owned with Monique): market value \$900,000; outstanding mortgage \$300,000 (Pierre's share of equity = \$300,000)
- RRSP: \$220,000 (grew from \$0 at marriage — he opened it during the marriage)
- Defined benefit pension (transfer value): \$480,000 (Pierre worked for his employer since 2003; the pension was worth \$80,000 at the date of marriage in 2005)
- A fishing cottage Pierre inherited from his uncle in 2018: \$150,000 (it was worth \$90,000 at the time of inheritance; Pierre and Monique used it as a vacation property, not as their family residence)
- Car: \$18,000
- Credit card debt: \$6,000

MONIQUE'S ASSETS:

- The matrimonial home (jointly owned with Pierre): her share of equity = \$300,000
- RRSP: \$95,000
- Damages received from a personal injury lawsuit settled 3 months before separation: \$40,000 for pain and suffering; \$85,000 for lost wages
- Savings account: \$15,000
- Car loan: \$8,000

YOUR TASK:

16. Calculate Pierre's NFP and Monique's NFP. Identify and explain the treatment of each disputed item. Determine the equalization payment. (20 marks)

EXAMINER'S GUIDE

Issues: Matrimonial home (no exclusion, no date-of-marriage deduction even if jointly owned); inherited cottage (excluded under s.4(2)(a) — NOT matrimonial home; deduct value at valuation date \$150,000); pension (deduct pre-marriage portion in date-of-marriage deduction = \$80,000); pain/suffering damages (excluded); lost wages damages (NOT excluded); Pierre's date-of-marriage deduction (\$12,000 + \$8,000 – \$15,000 = \$5,000).

Cases MUST cite: FLA ss.4, 5; excluded property categories s.4(2).

Full calculation required for both spouses. Equalization formula at end.

MODEL ANSWER — QUESTION 5

ISSUE

The issue is the equalization of Pierre's and Monique's net family properties under the Family Law Act, ss.4-5.

RULE

FLA s.5(1): When a marriage is terminated by separation, the spouse with the higher NFP shall pay the other one-half the difference. FLA s.4(1) NFP = all property at valuation date MINUS debts at valuation date MINUS excluded property MINUS the net value of property owned at date of marriage. FLA s.4(2) EXCLUDED PROPERTY: (a) gifts and inheritances from third parties; (c) non-pecuniary

personal injury damages (pain and suffering); (d) life insurance proceeds; (d) property traceable to the above. THE MATRIMONIAL HOME IS NEVER EXCLUDED — even if received as a gift, inheritance, or owned before marriage. The matrimonial home also cannot be claimed as a date-of-marriage deduction.

PIERRE'S NFP CALCULATION

APPLICATION — Step 1 — Pierre's Assets at Valuation Date (June 1, 2025)

Matrimonial home (Pierre's half-share): \$300,000
 RRSP: \$220,000
 Defined benefit pension (transfer value): \$480,000
 Inherited cottage: \$150,000
 Car: \$18,000
 STEP 1 TOTAL: \$1,168,000

APPLICATION — Step 2 — Pierre's Debts at Valuation Date

Mortgage is already accounted for in the net equity figure (\$300,000 represents equity after mortgage).
 Credit card debt: \$6,000
 STEP 2 DEDUCTION: \$6,000
 NET AFTER STEP 2: \$1,168,000 – \$6,000 = \$1,162,000

APPLICATION — Step 3 — Pierre's Excluded Property (FLA s.4(2))

INHERITED COTTAGE: Pierre inherited the cottage from his uncle in 2018 — a gift/inheritance from a third party during the marriage under s.4(2)(a). The cottage was NOT the matrimonial home (it was used as a vacation property, not their family residence). Therefore the cottage IS excluded property.
 EXCLUDED VALUE (at valuation date): \$150,000.
 NOTE: The date of inheritance value (\$90,000) is NOT the relevant figure — the exclusion applies to the asset's VALUE AT THE VALUATION DATE = \$150,000.
 STEP 3 DEDUCTION: \$150,000
 NET AFTER STEP 3: \$1,162,000 – \$150,000 = \$1,012,000

APPLICATION — Step 4 — Pierre's Date-of-Marriage Deduction

ASSETS AT DATE OF MARRIAGE (June 1, 2005):
 Car: \$12,000
 Savings: \$8,000
 Pension (value at date of marriage): \$80,000
 TOTAL ASSETS AT MARRIAGE: \$100,000

MATRIMONIAL HOME CHECK: The matrimonial home (Pierre's ½ share) was NOT owned by Pierre at the date of marriage in 2005 — they acquired it during the marriage. So no matrimonial home trap issue on Pierre's side.

DEBTS AT DATE OF MARRIAGE: Student loan \$15,000

DATE OF MARRIAGE DEDUCTION: \$100,000 – \$15,000 = \$85,000

PIERRE'S NFP: \$1,012,000 – \$85,000 = \$927,000

MONIQUE'S NFP CALCULATION

APPLICATION — Step 1 — Monique's Assets at Valuation Date

Matrimonial home (Monique's half-share): \$300,000
 RRSP: \$95,000
 Pain and suffering damages: \$40,000
 Lost wages damages: \$85,000
 Savings: \$15,000
 STEP 1 TOTAL: \$535,000

APPLICATION — Step 2 — Monique's Debts at Valuation Date

Car loan: \$8,000
 STEP 2 DEDUCTION: \$8,000
 NET AFTER STEP 2: \$535,000 – \$8,000 = \$527,000

APPLICATION — Step 3 — Monique's Excluded Property

PAIN AND SUFFERING DAMAGES (\$40,000): Under FLA s.4(2)(c), damages for personal injury that are NON-PECUNIARY (pain and suffering, loss of guidance and companionship) are EXCLUDED. The \$40,000 for pain and suffering is excluded.

LOST WAGES DAMAGES (\$85,000): Damages for LOST WAGES are PECUNIARY — they compensate for income the spouse would have earned. Lost wages are NOT excluded property under the FLA. The \$85,000 is included in Monique's NFP.

STEP 3 DEDUCTION: \$40,000 (pain and suffering only)
 NET AFTER STEP 3: \$527,000 – \$40,000 = \$487,000

APPLICATION — Step 4 — Monique's Date-of-Marriage Deduction

ASSETS AT DATE OF MARRIAGE (June 1, 2005): Monique had no assets.
 DEBTS AT DATE OF MARRIAGE: Monique had no debts.
 DATE OF MARRIAGE DEDUCTION: \$0 – \$0 = \$0

MONIQUE'S NFP: \$487,000 – \$0 = \$487,000

EQUALIZATION PAYMENT

APPLICATION — Final Calculation

Pierre's NFP: \$927,000
 Monique's NFP: \$487,000
 Difference: \$927,000 – \$487,000 = \$440,000
 Equalization Payment: \$440,000 ÷ 2 = \$220,000
 PIERRE owes MONIQUE an equalization payment of \$220,000.

S.5(6) UNCONSCIONABILITY CHECK: Is equal division unconscionable? Nothing in the facts suggests the result would be unconscionable — the marriage lasted 20 years, the property was accumulated together, and the equalization formula reflects the FLA's intent. No departure from equal division is warranted.

CONCLUSION

Pierre's NFP = \$927,000; Monique's NFP = \$487,000. Pierre shall pay Monique an equalization payment of \$220,000 under FLA s.5(1). Key rulings: (1) The inherited cottage (\$150,000) is excluded from Pierre's NFP as an inheritance under s.4(2)(a) — it was not the matrimonial home; (2) Pain and suffering damages (\$40,000) are excluded from Monique's NFP under s.4(2)(c); (3) Lost wages damages (\$85,000) are NOT excluded; (4) The pension pre-marriage value (\$80,000) reduces Pierre's date-of-marriage deduction as an asset owned at marriage.

QUESTION 6 OF 12

Primary Topic	Spousal Support — Entitlement + SSAG Without-Child Formula
Secondary Topics	Moge compensatory; Bracklow non-compensatory; Leskun; SSAG full calculation
Difficulty	Hard
Suggested Time	45 Minutes
Mark Value	25 Marks

FACT PATTERN

Ana Vasquez and James Whitmore were married for 17 years and separated in September 2025. They have no dependent children (their two adult children are independent). Ana is 49 and James is 52.

During the marriage, Ana worked full-time as a registered nurse, earning \$85,000/year. In 2014 — nine years into the marriage — Ana reduced to part-time work (0.6 FTE) to care for James's elderly mother who lived with them until her death in 2020. Ana attempted to return to full-time nursing after 2020 but found that the available full-time positions had been filled by more recently trained nurses, and she was only able to return to 0.8 FTE. Ana currently earns \$72,000/year. James earns \$175,000/year as a senior engineer.

James was unfaithful throughout the last five years of the marriage. Ana discovered this infidelity in 2024 and attributes significant depression and anxiety to James's betrayal. She remains in therapy and alleges her mental health condition further impairs her ability to work full-time.

Ana seeks spousal support. James argues: (1) Ana's career reduction was a personal choice unrelated to the marriage; (2) Ana's mental health was caused by his conduct and should not be his financial responsibility; (3) any support should be short-term and aimed at helping Ana retrain for full-time work.

YOUR TASK:

17. (a) Is Ana entitled to spousal support? Address all applicable bases for entitlement. (12 marks)
18. (b) If Ana is entitled, apply the SSAG without-child formula to determine quantum and duration. (8 marks)
19. (c) Is James correct that Ana's mental health damages are not his financial responsibility? (5 marks)

EXAMINER'S GUIDE

Issues: Moge compensatory (Ana reduced work for the marriage — caring for James's mother); Bracklow non-compensatory (depression/anxiety from infidelity — note this is need, not directly compensatory from marriage roles); Leskun v Leskun [2006] (conduct irrelevant to quantum EXCEPT

to the extent it causes economic disadvantage; mental health IS relevant if it impairs earning capacity regardless of cause); DA s.15.2(5) conduct irrelevant except to economic effect. SSAG without-child: \$175K vs \$72K incomes, 17 years.

Cases MUST cite: Moge v Moge [1992] 3 SCR 813; Bracklow v Bracklow [1999] 1 SCR 420; Leskun v Leskun [2006] 1 SCR 920; DA s.15.2(4)-(6); SSAG.

Time: (a) 22 min | (b) 14 min | (c) 9 min.

MODEL ANSWER — QUESTION 6

Part (a) — Entitlement to Spousal Support (12 marks)

ISSUE

The issue is whether Ana is entitled to spousal support under s.15.2 of the Divorce Act, and on what basis.

RULE

Divorce Act s.15.2(1): A court may make an order requiring a spouse to pay support for the other spouse having regard to the factors in s.15.2(4) and the objectives in s.15.2(6). Three recognized bases for entitlement: 1. COMPENSATORY (Moge v Moge [1992] 3 SCR 813): Marriage caused economic disadvantage. 2. NON-COMPENSATORY (Bracklow v Bracklow [1999] 1 SCR 420): Need arising from the breakdown of the marriage, even without a specific causal connection to marital roles. 3. CONTRACTUAL (Miglin): Not applicable here — no domestic contract. DA s.15.2(5): Courts shall NOT consider misconduct of a spouse when making a support order. DA s.15.2(6): Four objectives — recognize advantages/disadvantages; apportion financial consequences of child care; relieve hardship; promote self-sufficiency.

APPLICATION — Basis 1 — Compensatory Support (Moge)

CAUSAL CONNECTION TEST: Was Ana's current economic disadvantage caused by the marriage and the roles assumed within it?

Because Ana reduced her nursing work from full-time to 0.6 FTE in 2014 to care for James's mother who lived in the matrimonial home — a care obligation that arose from the marriage relationship — Ana's career disruption is directly connected to a marital role she assumed for the benefit of the family.

Because Ana attempted to return to full-time work after the elder care obligation ended in 2020 but found her career had been materially set back — available positions having been filled during her years of part-time work — Ana's current earnings of \$72,000 (0.8 FTE) rather than approximately \$106,250 (full-time equivalent, proportionally calculated) represent a concrete, ongoing economic disadvantage caused by the marital role she assumed.

James's argument that Ana's reduction was a 'personal choice' is rejected by Moge: when a spouse reduces employment to fulfil a domestic care responsibility that benefits the family (caring for an in-law in the home), this is a marital role, not a personal preference. Compensatory support is warranted.

APPLICATION — Basis 2 — Non-Compensatory Support (Bracklow)

Even if compensatory support were insufficient on its own, Ana also has a non-compensatory claim under Bracklow. Ana's depression and anxiety — whether or not caused by James's infidelity — have resulted in genuine economic need: her mental health condition impairs her ability to return to full-time nursing work.

Bracklow establishes that need alone, arising from the breakdown of the marriage and its aftermath, justifies support where the marriage was of sufficient quality and duration (17 years). A 17-year marriage creates a strong mutual obligation — James should not be entirely indifferent to Ana's

economic hardship even where the specific cause is his own misconduct rather than her marital role.

CONCLUSION

Ana is entitled to spousal support on TWO bases: (1) COMPENSATORY (Moge) — her part-time work during the marriage to care for James's mother directly caused her current reduced earning capacity; (2) NON-COMPENSATORY (Bracklow) — her mental health-related need, arising after the marriage breakdown. Both bases support entitlement to support, and both bases must be considered in determining quantum.

Part (b) — SSAG Without-Child Formula (8 marks)

ISSUE

The issue is the quantum and duration of spousal support applying the SSAG without-child support formula.

RULE

SSAG without-child formula: LOW QUANTUM = $1.5\% \times \text{income differential} \times \text{years of cohabitation}$; HIGH QUANTUM = $2\% \times \text{income differential} \times \text{years}$. Cap at 50% of income differential. Duration: 0.5 to 1 $\times$ years of cohabitation (or indefinite where rule of 65 applies).

APPLICATION — SSAG Calculation

INCOME DIFFERENTIAL: James \$175,000 – Ana \$72,000 = \$103,000/year

QUANTUM RANGE:

LOW END: $1.5\% \times \$103,000 \times 17 \text{ years} = \$26,265/\text{year} = \$2,189/\text{month}$

HIGH END: $2\% \times \$103,000 \times 17 \text{ years} = \$35,020/\text{year} = \$2,918/\text{month}$

CAP CHECK: $50\% \times \$103,000 = \$51,500/\text{year} = \$4,292/\text{month}$ — within cap.

SSAG QUANTUM RANGE: \$2,189 to \$2,918 per month.

DURATION RANGE:

LOW END: $0.5 \times 17 \text{ years} = 8.5 \text{ years}$

HIGH END: $1 \times 17 \text{ years} = 17 \text{ years}$

RULE OF 65 CHECK: James's age (52) + years of cohabitation (17) = $69 \geq 65$. The rule of 65 applies — INDEFINITE support may be appropriate.

SSAG DURATION: 8.5 to 17 years, or potentially INDEFINITE given that the rule of 65 is met.

POSITION IN THE RANGE: Given the 17-year marriage, the compensatory basis (six years of reduced employment for the marriage), Ana's age (49 — limited runway for full-time career recovery), and the ongoing non-compensatory need from her mental health condition, an award toward the UPPER end of the quantum range and toward INDEFINITE duration is appropriate.

APPROPRIATE AWARD: Approximately \$2,700/month, reviewed after 5 years (with the expectation that Ana pursues therapy and, if health permits, additional hours); with a possible indefinite order given the rule of 65.

CONCLUSION

Applying the SSAG without-child formula: James earns \$175,000 and Ana earns \$72,000 — gross income differential \$103,000. SSAG quantum range: \$2,189 to \$2,918/month. SSAG duration: 8.5-17 years or indefinite (rule of 65 met). Appropriate award: approximately \$2,700/month, with a review mechanism at 5 years and potential for indefinite support.

Part (c) — James's Argument About Ana's Mental Health (5 marks)**ISSUE**

The issue is whether James's infidelity, which Ana alleges caused her depression and anxiety, is relevant to the spousal support analysis.

RULE

Divorce Act s.15.2(5): In making a support order, the court SHALL NOT take into consideration any misconduct of a spouse in relation to the marriage. *Leskun v Leskun* [2006] 1 SCR 920: Misconduct is IRRELEVANT to spousal support quantum — the court cannot use James's infidelity as a basis to increase support as punishment. HOWEVER, the ECONOMIC CONSEQUENCES of misconduct are relevant. Where misconduct causes demonstrable economic disadvantage — such as a mental health condition that impairs earning capacity — those economic consequences are relevant to the support analysis.

APPLICATION — Leskun Analysis — Misconduct vs Economic Effect

James is CORRECT that his infidelity itself cannot be considered — courts cannot award Ana 'extra' support to punish James for his unfaithfulness under DA s.15.2(5).

However, James is WRONG that Ana's mental health condition is therefore irrelevant. Because Ana's depression and anxiety — whatever their cause — have a demonstrable effect on her current earning capacity and her ability to return to full-time nursing, these conditions are relevant economic circumstances. The source of the mental health condition (James's infidelity) is inadmissible; the ECONOMIC EFFECT (reduced working capacity, ongoing therapy costs, impaired job search) is admissible.

Leskun confirms this distinction: if Ana can establish that her mental health condition impairs her ability to be self-sufficient, that impairment is a relevant need factor under *Bracklow*'s non-compensatory basis — regardless of what caused the condition. James cannot argue both that his infidelity is irrelevant AND that its economic effects on Ana should be ignored.

CONCLUSION

James is partially correct: his infidelity per se is irrelevant to spousal support under DA s.15.2(5) and *Leskun* — no 'misconduct premium' is available. However, James is incorrect that Ana's mental health condition is therefore irrelevant. The ECONOMIC CONSEQUENCES of Ana's depression and anxiety — impaired earning capacity, ongoing therapy costs, reduced ability to work full-time — are relevant to the support analysis under both *Moge* (as a consequence of the marriage breakdown) and *Bracklow* (as an economic need), regardless of their cause.

QUESTION 7 OF 12

Primary Topic	Relocation — Burden of Proof + Best Interests + Post-Separation Violence
Secondary Topics	DA ss.16.9, 16.92, 16.93; <i>Barendregt</i> 2022; s.16(3)(j); coercive control
Difficulty	Hard
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Priya Mehta and Liam Burke have been separated for 18 months. They were married for 8 years and

have one child, Aria, age 6. The current parenting order (made 12 months ago) provides for equal parenting time — week-on, week-off — between both parents. Both parties live in Hamilton, Ontario.

During the marriage, Liam was controlling. He monitored Priya's phone, isolated her from her family, and managed all finances, leaving Priya with no access to bank accounts or credit cards. Following separation, Liam has attended Priya's workplace on three occasions unannounced, sent repeated text messages at all hours (including during Priya's parenting time), and has made comments to Aria about 'Mommy's new friends' in a manner intended to undermine Priya's relationship with Aria.

Priya now seeks to relocate with Aria to Mississauga (approximately 60 km from Hamilton) to be closer to her parents, who can provide childcare while Priya completes a nursing degree program she has enrolled in. The program is 2 years and will significantly increase Priya's earning capacity.

Liam opposes the relocation and alleges Priya has been attempting to reduce his parenting time by scheduling Aria's activities during his parenting weeks. Priya denies this.

YOUR TASK:

20. (a) Identify and analyse any family violence issues raised by the facts. How do they affect the parenting analysis? (7 marks)
21. (b) Does the proposed move from Hamilton to Mississauga constitute a 'relocation' under the Divorce Act? If so, identify the burden of proof and apply the best interests framework. (13 marks)

EXAMINER'S GUIDE

Issues: (a) Coercive control during marriage (financial, monitoring, isolation); post-separation stalking behaviour at workplace; weaponizing Aria ('Mommy's new friends'); Nonomura et al. (2021); Katz et al. (2020); DA s.16(3)(j) mandatory; s.16(4) safety priority. (b) Whether Mississauga (60 km) constitutes a 'relocation' — significant impact test (s.16.7); equal parenting time → Priya bears burden (s.16.92); notice satisfied; best interests including family violence factor.

Cases MUST cite: Barendregt 2022 SCC 22; DA ss.16.7, 16.9, 16.92, 16.93, 16(3)(j), 16(4); Nonomura et al. 2021; Katz et al. 2020.

MODEL ANSWER — QUESTION 7

Part (a) — Family Violence Analysis (7 marks)

ISSUE

The issue is whether Liam's conduct constitutes family violence under the Divorce Act and how it affects the parenting analysis.

RULE

Divorce Act s.2(1): Family violence includes physical abuse, psychological abuse (intimidation, threats, isolation, humiliation), financial abuse (controlling access to money), harassment and stalking, and COERCIVE CONTROL — a pattern of behaviour designed to control, manipulate, isolate, or intimidate. S.16(3)(j): Courts MUST consider family violence and its impact on the child's safety and wellbeing and on the offending parent's ability to meet the child's needs. S.16(4): Where family violence is established, the child's safety, security and wellbeing takes priority even over the maximum contact principle. Nonomura et al. (2021): Coercive control is a pattern — not a single incident — that functions to control and isolate the victim. Post-separation coercive control is particularly dangerous as the abuser loses direct access. Katz et al. (2020): Post-separation coercive

control harms children directly and by undermining the safe parent's ability to parent.

APPLICATION — Liam's Conduct During the Marriage — Coercive Control

During the marriage, Liam's conduct included: monitoring Priya's phone (surveillance — a recognized form of psychological abuse); isolating Priya from her family (isolation — a core component of coercive control identified by Nonomura et al.); controlling all finances and denying Priya access to bank accounts and credit cards (financial abuse — explicitly listed in DA s.2(1)). This pattern constitutes coercive control within the meaning of DA s.2(1).

APPLICATION — Post-Separation Conduct — Continuation of Coercive Control (Katz et al.)

Following separation, Liam has: attended Priya's workplace unannounced on three occasions (stalking — harassment listed in DA s.2(1)); sent repeated texts at all hours including during Priya's parenting time (harassment and continued monitoring); made comments to Aria about 'Mommy's new friends' in a manner intended to undermine Priya's relationship with Aria (weaponizing the child — a recognized form of post-separation coercive control).

Per Katz et al. (2020), separation does not end coercive control — it often intensifies. Liam's post-separation conduct demonstrates a continuation of the controlling pattern. The conduct harms Aria directly (being used as a tool against her mother) and indirectly (by undermining Priya's ability to parent effectively when she is being harassed).

APPLICATION — Impact on Parenting Analysis — s.16(3)(j) and s.16(4)

Under s.16(3)(j), the court MUST consider: (i) the impact of the violence on Aria's safety, security, and wellbeing — Aria's exposure to her father's comments about 'Mommy's new friends' and the ongoing tension created by Liam's harassment of Priya harms Aria's sense of security; (ii) Liam's ability and willingness to meet Aria's needs — a parent who weaponizes the child against the other parent demonstrates an inability to prioritize the child's wellbeing over their own control objectives.

Under s.16(4), where family violence is established, Aria's safety, security, and wellbeing takes PRIORITY. The court should consider imposing conditions on Liam's parenting time — no disparaging comments about Priya, communication limited to specific platforms, consequences for workplace attendance during Priya's time.

CONCLUSION

Liam's conduct constitutes family violence under DA s.2(1) — specifically coercive control (financial, monitoring, isolation) during the marriage and post-separation stalking, harassment, and weaponizing of Aria. Under s.16(3)(j), the court must consider this violence and its impact. Under s.16(4), Aria's safety takes priority. The court should impose conditions on Liam's parenting time and may reduce his parenting time if the conduct continues.

Part (b) — Relocation Analysis (13 marks)

ISSUE

The issues are: (1) whether the move from Hamilton to Mississauga constitutes a 'relocation' under DA s.16.7; (2) if so, who bears the burden of proof; and (3) whether the relocation is in Aria's best interests.

RULE

S.16.7: A relocation is a change in residence likely to have a SIGNIFICANT IMPACT on the child's relationship with a person with parenting time. Distance alone is not determinative — the question is whether the relationship will be significantly impacted. S.16.9: 60 days' notice required. S.16.92: Equal parenting time → relocating parent (Priya) bears the burden of proving the relocation IS in Aria's best interests. Barendregt 2022 SCC 22: Best interests governs; no presumption for or against relocation.

APPLICATION — Does the Move Constitute a Relocation? — s.16.7

The move from Hamilton to Mississauga is approximately 60 km — roughly a 45-60 minute drive. The key question is whether this distance would have a SIGNIFICANT IMPACT on Aria's relationship with Liam.

Because the current arrangement is week-on/week-off (equal parenting time), a 60 km / 45-60 minute commute between residences may not significantly impair the relationship — exchanges remain feasible, and Aria could attend school in one location with both parents commuting for exchange. However, if Aria were to change schools or if the commute creates logistical difficulties for exchanges, the impact could be significant.

On balance, a 60 km move with a feasible commute time is a borderline relocation. A court would likely find that because the existing parenting arrangement involves structured weekly exchanges, a 60 km move that requires extended travel time for each exchange — and may require Aria to change schools — does constitute a relocation under s.16.7.

APPLICATION — Burden of Proof — s.16.92 (Equal Parenting Time)

Because the existing parenting order provides for substantially EQUAL parenting time (week-on/week-off), s.16.92 applies: PRIYA (the relocating parent) bears the burden of proving that the relocation IS in Aria's best interests.

APPLICATION — Best Interests Analysis — s.16(3) Factors (Barendregt)

PRIYA'S REASONS FOR RELOCATION: Priya seeks proximity to her parents (childcare support during nursing degree) and the nursing program itself (career advancement, increased earning capacity). These reasons benefit Aria: Priya's improved income and career stability serve Aria's long-term financial security; her parents provide safe, known childcare. The reasons are legitimate and child-relevant.

ARIA'S AGE AND ADAPTABILITY: Aria is 6 — young enough to adapt to a new school environment. At 6, the primary attachment is to her parents, not her school peer group.

IMPACT ON RELATIONSHIP WITH LIAM: A 60 km move maintains the feasibility of the week-on/week-off arrangement, though with additional commuting burden. Priya proposes that both parents share the commute burden. The impact on Liam's relationship with Aria is manageable, not severe.

FAMILY VIOLENCE (s.16(3)(j)): The established coercive control and post-separation harassment are highly relevant. Aria benefits from Priya having a stronger support network (her parents in Mississauga) that will buffer Liam's controlling behaviour. Priya's access to family support may improve her ability to parent effectively despite Liam's ongoing harassment.

ARIA'S VOICE: No specific evidence of Aria's preference at age 6.

APPLICATION — Has Priya Met the Burden Under s.16.92?

Because Priya has demonstrated that: (a) the move serves a legitimate purpose (nursing education, proximity to support); (b) the impact on Liam's relationship with Aria is manageable given the 60 km distance and continued week-on/week-off feasibility; (c) Aria's security is improved by Priya having family support; and (d) the family violence context makes Priya's access to support particularly important — Priya has met the burden of proving that the relocation is in Aria's best interests.

CONCLUSION

The move from Hamilton to Mississauga constitutes a relocation under DA s.16.7. Priya bears the burden under s.16.92 (equal parenting time) and has met it. The relocation should be PERMITTED, subject to a revised parenting order that maintains the week-on/week-off arrangement (with both parents sharing the exchange commute) and imposes conditions on Liam's conduct reflecting the family violence findings under s.16(3)(j) and s.16(4).

QUESTION 8 OF 12

Primary Topic	Cohabitants — Unjust Enrichment + FLA s.29 Support
Secondary Topics	Kerr v Baranow; joint family venture; Kassabian 2025; FLA ss.29-33
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

Tomasz Wiśniewski and Grace Kim cohabited for nine years from 2016 to 2025. They never married. They have no children together. When they began cohabiting, Tomasz owned a small landscaping business and Grace worked as a marketing coordinator earning \$55,000/year.

Over the nine years of cohabitation, Grace managed all household responsibilities (cooking, cleaning, managing the household bills) and contributed her income to a shared household account from which both paid expenses. From 2018 onwards, Grace also took an active role in Tomasz's landscaping business — managing his scheduling, handling client invoicing, responding to customer complaints, and managing his social media accounts. Grace received no compensation for this business work. Tomasz's business grew from annual revenues of \$80,000 in 2016 to \$400,000 in 2025 — much of this growth attributable to the improved client management and marketing that Grace provided.

Tomasz owns the house where they lived (purchased before the relationship) and all business assets. Grace has \$45,000 in her personal RRSP. Following their separation, Grace earns \$55,000/year and Tomasz earns approximately \$200,000/year (drawing a salary from his business).

YOUR TASK:

22. (a) Does Grace have a property claim against Tomasz? Apply the unjust enrichment framework from Kerr v Baranow. (9 marks)
23. (b) Is Grace entitled to spousal support from Tomasz? Apply the FLA framework. (6 marks)

EXAMINER'S GUIDE

Issues: (a) No FLA equalization — not married. Kerr v Baranow unjust enrichment: enrichment (business growth, household services), deprivation (uncompensated labour), no juristic reason; joint family venture factors (mutual effort — business integration especially strong; economic integration; intent; priority of family — no children but shared finances). Kassabian v Marcarian 2025 ONCA 239. (b) FLA s.29 — 3+ years cohabitation satisfied (9 years); FLA s.33 criteria for support; SSAG by analogy.

Cases MUST cite: Kerr v Baranow [2011] 1 SCR 269; Kassabian v Marcarian 2025 ONCA 239; FLA ss.29, 30, 33.

MODEL ANSWER — QUESTION 8**Part (a) — Property Claim: Unjust Enrichment (9 marks)****ISSUE**

The issue is whether Grace has a property claim against Tomasz based on unjust enrichment arising from her contributions to the household and Tomasz's landscaping business during their nine-year

cohabitation.

RULE

Because Tomasz and Grace were NEVER MARRIED, Grace has NO equalization rights under the Family Law Act — Part I applies only to married spouses. Grace's property claims must be pursued through the law of unjust enrichment. *Kerr v Baranow* [2011] 1 SCR 269: Three elements of unjust enrichment: (1) enrichment of Tomasz; (2) corresponding deprivation of Grace; (3) absence of a juristic reason. Where a joint family venture is established, Grace is entitled to a proportionate share of wealth accumulated through the joint effort. *Kassabian v Marcarian* 2025 ONCA 239: Substantial contributions — including non-financial ones — during cohabitation may entitle the contributing partner to a proportionate share of accumulated wealth.

APPLICATION — Element 1 — Enrichment of Tomasz

BUSINESS CONTRIBUTIONS: Because Grace managed scheduling, client invoicing, customer complaints, and social media marketing for Tomasz's business from 2018 onwards — services for which she received NO compensation — and because the business grew from \$80,000 to \$400,000 in annual revenues over this period (with much of the growth attributable to Grace's improved client management), Tomasz was enriched by Grace's uncompensated professional services. The increase in business value from these services is a direct and documentable enrichment.

HOUSEHOLD CONTRIBUTIONS: Because Grace assumed all household responsibilities throughout the nine-year relationship — cooking, cleaning, bill management — she freed Tomasz from these obligations, allowing him to focus on his business. These services have a quantifiable replacement cost and represent an enrichment of Tomasz.

APPLICATION — Element 2 — Corresponding Deprivation of Grace

Because Grace provided uncompensated business services (effectively acting as an unpaid office manager and marketing coordinator — a role that commands substantial market wages) and uncompensated domestic labour for nine years, and because she contributed her income to a shared household account without accumulating personal wealth proportional to her contributions, Grace suffered a corresponding deprivation. Her RRSP of \$45,000 represents her only personal accumulated wealth after nine years of substantial contribution to Tomasz's household and business.

APPLICATION — Element 3 — No Juristic Reason

Because there was no contract compensating Grace for her business services (she was not an employee, no service agreement existed), and because Grace did not intend her contributions as gifts — they were made in the expectation of a mutual relationship — there is no juristic reason for Tomasz to retain the benefit of Grace's uncompensated services without sharing the resulting wealth with her.

APPLICATION — Joint Family Venture — Proportionate Share

MUTUAL EFFORT: Because Grace and Tomasz jointly built the business through their combined efforts — Grace's client management and marketing, Tomasz's operational work — mutual effort is strongly established, particularly from 2018 onwards.

ECONOMIC INTEGRATION: Because both parties contributed to a shared household account and Grace's income subsidized household expenses that freed Tomasz's business income for reinvestment, economic integration existed.

ACTUAL INTENT: Because the parties operated as a household unit with shared finances, intent to build joint resources (even if never formally articulated) is reasonably inferred.

PROPORTIONATE SHARE: Given that Grace's contributions to the business (client management, marketing, invoicing) from 2018 to 2025 (7 years) were substantial and directly attributable to business growth, and given that the business grew from \$80,000 to \$400,000 in revenues (approximately \$320,000 in additional annual revenue), Grace is entitled to a proportionate share of the accumulated business value and household wealth. A court would likely order a constructive trust over a portion of the business assets or a monetary award reflecting the proportionate contribution.

CONCLUSION

Grace has established unjust enrichment against Tomasz — enrichment of Tomasz (through uncompensated business and domestic services), corresponding deprivation of Grace (uncompensated labour and foregone personal wealth accumulation), and no juristic reason. The joint family venture analysis supports a proportionate share of the wealth accumulated through their combined effort, particularly the business growth attributable to Grace's seven years of business management. Grace does NOT have FLA equalization rights — this is a trust-based remedy only. *Kassabian v Marcarian* 2025 ONCA 239 supports this approach.

Part (b) — Spousal Support Under FLA s.29 (6 marks)**ISSUE**

The issue is whether Grace is entitled to spousal support from Tomasz under the Family Law Act.

RULE

FLA s.29: For support purposes, 'spouse' includes two persons who have cohabited CONTINUOUSLY for not less than THREE YEARS — whether or not they were married. Grace and Tomasz cohabited for nine years → Grace qualifies as a spouse for FLA support purposes under s.29. FLA s.30: Every spouse has an obligation to provide support for the other, in accordance with need, to the extent capable. FLA s.33: The court considers criteria including current assets and means, accustomed standard of living, capacity to become self-supporting, duration of cohabitation, contributions to property, and disruption of career.

APPLICATION — FLA Support Entitlement

Because Grace cohabited with Tomasz for nine years — well exceeding the three-year threshold in FLA s.29 — she qualifies as a 'spouse' for support purposes. Tomasz therefore has a support obligation to Grace under s.30.

CRITERIA UNDER s.33(9):

- Current means: Tomasz earns \$200,000/year; Grace earns \$55,000/year — a significant income disparity.
- Standard of living: During cohabitation, Grace lived at a standard supported by a household with combined incomes of approximately \$255,000 — she cannot maintain that standard on \$55,000 alone.
- Contributions to property and career: Grace made direct contributions to Tomasz's business that significantly increased his income — these contributions to his career development are a specific s.33(9) criterion.
- Duration: Nine years of cohabitation supports a meaningful support obligation.

QUANTUM: Applying the SSAG without-child formula by analogy (the SSAG are used in FLA proceedings as a practical tool): income differential $\$200,000 - \$55,000 = \$145,000$; range: $\$145,000 \times 1.5\text{-}2\% \times 9 \text{ years} = \$19,575 \text{ to } \$26,100/\text{year} = \$1,631 \text{ to } \$2,175/\text{month}$; duration: 4.5 to 9 years. A mid-range award of approximately \$1,900/month for 6-7 years is appropriate.

CONCLUSION

Grace is entitled to spousal support from Tomasz under FLA s.30 and s.33. She qualifies as Tomasz's 'spouse' under FLA s.29 (nine years of continuous cohabitation). Tomasz's income of \$200,000 compared to Grace's \$55,000, the significant income disparity, the nine-year cohabitation, and Grace's contributions to Tomasz's business (a specific s.33 criterion) all support a meaningful support award. Applying the SSAG framework by analogy: approximately \$1,900/month for 6-7 years.

QUESTION 9 OF 12

Primary Topic	Family Violence and Parenting — Coercive Control
Secondary Topics	DA s.16(3)(j); s.16(4); safety priority; Nonomura 2021; Katz 2020; conditions
Difficulty	Medium
Suggested Time	36 Minutes
Mark Value	20 Marks

FACT PATTERN

Beatriz Santos and Omar Khalil were married for seven years and have a daughter, Yasmin, age 5. They separated six months ago when Beatriz left the matrimonial home with Yasmin following an incident in which Omar threw a plate at the wall during an argument. No plate struck anyone, but Yasmin witnessed the incident and has since exhibited anxiety and sleep disturbances.

Evidence before the court includes:

- A police incident report from the plate-throwing incident (charges were not laid as no physical contact occurred).
- Testimony from Beatriz that during the marriage, Omar made all financial decisions, restricted her from seeing her family, and demanded to know her whereabouts at all times. She did not identify these as 'abuse' during the marriage.
- A clinical psychologist's report noting that Yasmin, age 5, shows symptoms consistent with witnessing domestic conflict and recommends therapeutic support and a stable, predictable parenting environment.
- Evidence that Omar has been a loving and attentive father — he took Yasmin to activities, read to her daily, and maintained consistent routines.
- No evidence of any incident of physical violence directed at Beatriz or Yasmin at any time.

Omar seeks equal parenting time (week-on/week-off). Beatriz seeks primary residence with supervised parenting time for Omar.

YOUR TASK:

24. (a) Identify and analyze all family violence issues on these facts under the Divorce Act framework. (10 marks)
25. (b) What parenting order is in Yasmin's best interests? Apply all relevant s.16(3) factors. (10 marks)

EXAMINER'S GUIDE

Issues: Identifying the forms of family violence — plate incident (psychological; not physical violence but creates fear); financial control during marriage; monitoring whereabouts; isolating from family = coercive control pattern per Nonomura et al. 2021. Yasmin as a witness — Katz et al. 2020 (harm to children from witnessing violence). s.16(3)(j) mandatory; s.16(4). Best interests: Omar's positive parenting history (factor b, d) weighed against violence concerns; supervised vs unsupervised; clinical recommendation. Strong Yasmin at age 5.

Cases MUST cite: DA s.2(1) (definition of family violence); DA s.16(3)(j); DA s.16(4); Nonomura et al. 2021; Katz et al. 2020.

MODEL ANSWER — QUESTION 9

Part (a) — Family Violence Analysis (10 marks)

ISSUE

The issue is whether the facts disclose family violence within the meaning of the Divorce Act, and if so, what forms.

RULE

Divorce Act s.2(1): Family violence includes physical abuse, psychological abuse (intimidation, threats, isolation, humiliation), financial abuse, harassment and stalking, COERCIVE CONTROL — a pattern of behaviour designed to control, manipulate, isolate or intimidate — and killing or harming animals or property. CRITICAL: Family violence does NOT require physical contact. Psychological abuse, financial control, isolation, and coercive control are all recognized forms of family violence under the post-2019 Divorce Act. Nonomura et al. (2021): Coercive control is a pattern of behaviour — not a single incident — that may include monitoring, isolation, economic control, and emotional manipulation. Victims often do not identify these behaviours as 'abuse' during the relationship. Katz et al. (2020): Children who witness domestic violence are harmed directly — the harm is not only to the victimized parent. Post-separation violence continues to harm children.

APPLICATION — Form 1 — Psychological Abuse: The Plate Incident

Because Omar threw a plate at a wall during an argument — in the presence of Yasmin — this constitutes psychological abuse under DA s.2(1) even though no plate struck anyone. The act was designed to intimidate, instill fear, and demonstrate readiness to use physical force. The psychological impact on Beatriz (the immediate audience) and Yasmin (the child witness) is the harm that the law recognizes. The absence of criminal charges is irrelevant — family law does not require a criminal standard of proof.

APPLICATION — Form 2 — Financial Abuse

Because Omar made all financial decisions during the marriage and Beatriz had no independent control over finances, Omar exercised financial control — explicitly listed as a form of family violence in DA s.2(1). The fact that Beatriz did not recognize this as 'abuse' during the marriage is consistent with Nonomura et al.'s observation that victims frequently do not identify coercive control patterns during the relationship.

APPLICATION — Form 3 — Coercive Control: Isolation and Monitoring

Because Omar restricted Beatriz from seeing her family and demanded to know her whereabouts at all times, he engaged in a pattern of isolation and surveillance — core components of coercive control as described by Nonomura et al. (2021). The pattern across all three forms (financial control, monitoring, isolation) constitutes coercive control under DA s.2(1) — not merely isolated incidents of bad behaviour.

APPLICATION — Impact on Yasmin — Katz et al. 2020

Because Yasmin witnessed the plate incident and has since exhibited anxiety and sleep disturbances (confirmed by the clinical psychologist's report), the family violence has directly harmed Yasmin. Per Katz et al. (2020), children who witness domestic violence are harmed by that exposure — the harm to Yasmin is not indirect. The clinical psychologist's recommendation for therapeutic support and a stable, predictable environment confirms the harm.

APPLICATION — Mandatory Consideration Under s.16(3)(j) and s.16(4)

Under s.16(3)(j), the court MUST consider the family violence and its impact on: (i) Yasmin's safety, security, and wellbeing — directly impacted as established by the psychologist's report; and (ii) Omar's ability and willingness to care for and meet Yasmin's needs — a parent who engages in coercive control and who creates fear through destructive acts demonstrates an inability to prioritize the child's emotional safety over their own need for control.

Under s.16(4), Yasmin's safety takes PRIORITY where family violence is established — even over the

maximum contact principle.

CONCLUSION

Three forms of family violence are established on these facts: (1) psychological abuse — the plate incident; (2) financial abuse — Omar's exclusive financial control; (3) coercive control — isolation from family and monitoring of whereabouts. All three are recognized under DA s.2(1). Yasmin has been directly harmed by witnessing the violence (Katz et al. 2020). The court must address this violence under the mandatory s.16(3)(j) framework and prioritize Yasmin's safety under s.16(4).

Part (b) — Best Interests Analysis and Parenting Order (10 marks)

ISSUE

The issue is what parenting order is in Yasmin's best interests under Divorce Act s.16(1), having regard to all s.16(3) factors.

APPLICATION — Applying the s.16(3) Factors

FACTOR (b) — Quality of Relationships: The evidence confirms Omar has been a loving, involved, and attentive father — he took Yasmin to activities, read to her daily, and maintained consistent routines. Yasmin's relationship with Omar is positive and has developmental value. This factor supports meaningful parenting time for Omar.

FACTOR (d) — History of Care: Beatriz was the primary caregiver during the marriage (Omar's coercive control and the household dynamic support this inference). Since separation six months ago, Yasmin has lived primarily with Beatriz. The history of care supports Beatriz as the primary residence parent.

FACTOR (j) — Family Violence: As analyzed in Part (a), family violence is established — coercive control, financial abuse, and the plate incident. Omar's willingness and ability to meet Yasmin's needs is called into question by his pattern of controlling behaviour. A parent who uses coercive tactics cannot reliably prioritize the child's emotional safety. This factor weighs against equal unsupervised parenting time immediately.

CLINICAL PSYCHOLOGIST'S RECOMMENDATION: The psychologist recommends a stable, predictable environment and therapeutic support for Yasmin. An abrupt transition to week-on/week-off parenting (going from six months of primary residence with Beatriz to equal sharing) would not be consistent with the recommendation for stability and predictability.

BALANCING: Omar's positive parenting history must be balanced against the established family violence and the harm to Yasmin. Equal unsupervised parenting time immediately (week-on/week-off) is NOT appropriate because: (a) Yasmin's anxiety and sleep disturbances require a stable, consistent primary environment during the therapeutic process; (b) Omar's coercive control pattern has not been addressed — no evidence of counselling or acknowledgment; (c) the abrupt transition contradicts the clinical recommendation.

WHAT ORDER IS APPROPRIATE? Full supervision is likely too restrictive given Omar's positive parenting history and the absence of any physical violence directed at Yasmin or Beatriz. An **INTERMEDIATE** approach is most appropriate: (a) primary residence with Beatriz; (b) meaningful unsupervised parenting time with Omar (e.g., weekend parenting time, initially every second weekend with a view to expansion); (c) conditions addressing the coercive control — no disparaging comments, communication through a co-parenting app, no monitoring of Beatriz; (d) both parents required to attend relevant parent education programs; (e) judicial review in 6 months with updated therapeutic report.

CONCLUSION

Yasmin's best interests are served by an order providing primary residence with Beatriz, meaningful unsupervised parenting time with Omar (every second weekend, expanding as the therapeutic process progresses and Omar demonstrates changed conduct), and specific conditions addressing the coercive control pattern. Equal week-on/week-off parenting is not appropriate at this stage given the established family violence, Yasmin's diagnosed anxiety, and the clinical recommendation for stability and predictability. The matter should be reviewed in 6 months.

QUESTION 10 OF 12

Primary Topic	Variation — Spousal Support, Child Support, and Parenting
Secondary Topics	DA s.17; LMP v LS 2011; material change test; CSG s.14; parenting variation
Difficulty	Medium
Suggested Time	27 Minutes
Mark Value	15 Marks

FACT PATTERN

Three years ago, Fatima and Jordan Al-Rashid divorced after a 10-year marriage. The divorce order included:

- Child support: Jordan pays \$850/month for their son, Karim, age 12, based on Jordan's then-income of \$75,000/year.
- Spousal support: Jordan pays Fatima \$1,100/month for 8 years (time-limited order) based on Fatima's then-income of \$35,000 and Jordan's \$75,000.
- Parenting: Primary residence with Fatima; Jordan has parenting time every other weekend and Wednesday evenings.

Three years have now passed. The following changes have occurred:

- Jordan has been promoted and now earns \$130,000/year.
- Fatima has started a new relationship with a partner who earns \$90,000/year and with whom she has been cohabiting for 8 months.
- Karim, now 12, has told both parents he wants to live primarily with Jordan — he says he has more in common with his dad and finds his mother's new partner 'awkward.' Karim's preference has been consistent over 6 months.
- Fatima claims that Jordan's income increase justifies increased spousal support and child support.
- Jordan claims that Fatima's cohabitation justifies reduction or termination of spousal support.

YOUR TASK:

26. (a) Should child support be varied to reflect Jordan's income increase? (5 marks)
27. (b) Should spousal support be varied? Address both parties' arguments. (7 marks)
28. (c) Should the parenting order be varied to reflect Karim's preference? (3 marks)

EXAMINER'S GUIDE

Issues: (a) CSG s.14 — change in income of more than 10% = change in circumstances; fresh table amount at \$130,000. (b) LMP v LS material change: Jordan's income increase = material change (entitlement to increase); Fatima's cohabitation = material change but does NOT automatically

terminate support — s.17(10) DA; court reassesses need. (c) Karim age 12, 6 months consistent preference = material change in parenting; weight of child preference at age 12.
Cases MUST cite: LMP v LS [2011] 3 SCR 775; DA s.17; CSG s.14; DA s.17(10) (remarriage/cohabitation).

MODEL ANSWER — QUESTION 10

Part (a) — Child Support Variation (5 marks)

ISSUE

The issue is whether Jordan's income increase from \$75,000 to \$130,000 justifies a variation of the child support order.

RULE

CSG s.14: A change in circumstances for child support purposes includes a change in the income of the payor parent. The Federal Child Support Guidelines contemplate that child support is reviewed when income changes. DA s.17: A court may vary a child support order where there has been a change in circumstances.

APPLICATION — Application

Because Jordan's income has increased from \$75,000 to \$130,000 — an increase of \$55,000 (73%) — there is clearly a material change in circumstances for child support purposes under CSG s.14. This change was not within the contemplation of the original order (which was based on Jordan's then-current income of \$75,000) and is of sufficient magnitude to have resulted in a different order. REVISED TABLE AMOUNT: The table amount for one child in Ontario at \$130,000 is approximately \$1,070/month (compared to \$850/month at \$75,000). Jordan's obligation should increase to approximately \$1,070/month.

RETROACTIVITY: Because Jordan has an ongoing, positive obligation to disclose income increases (Colucci v Colucci 2021 SCC 24), the variation may be made retroactive to the date Jordan's income materially increased, subject to the Colucci framework.

CONCLUSION

Child support should be varied from \$850/month to approximately \$1,070/month reflecting Jordan's current income of \$130,000 under CSG s.3(1). The income increase of 73% is a material change in circumstances under CSG s.14 and DA s.17.

Part (b) — Spousal Support Variation (7 marks)

ISSUE

The issues are: (1) whether Fatima's claim for increased spousal support is justified by Jordan's income increase; and (2) whether Jordan's claim for reduction based on Fatima's cohabitation is justified.

RULE

DA s.17: Courts may vary a spousal support order on material change in circumstances. LMP v LS [2011] 3 SCR 775: three-part material change test — change occurred; not within reasonable contemplation at time of order; sufficient magnitude. DA s.17(10): The remarriage or cohabitation of the spouse receiving support is a CHANGE IN CIRCUMSTANCES — but it does NOT automatically

terminate support. The court reassesses the recipient's need in light of the new relationship. SSAG: Any variation uses fresh SSAG calculation with current incomes.

APPLICATION — Issue 1 — Fatima's Claim: Jordan's Income Increase

LMP v LS MATERIAL CHANGE TEST: Jordan's income increase from \$75,000 to \$130,000 (73% increase) was not contemplated by the original order and is of sufficient magnitude to have produced a different spousal support order. Material change is established.

FRESH SSAG CALCULATION (without-child formula, no dependent children):

Income differential: $\$130,000 - \$35,000 = \$95,000$ (assuming Fatima's income unchanged).

SSAG range: $\$95,000 \times 1.5\% \times 10 \text{ years} = \$14,250/\text{year}$ (\$1,188/month) to $\$95,000 \times 2\% \times 10 \text{ years} = \$19,000/\text{year}$ (\$1,583/month).

The original award of \$1,100/month was within a range based on the prior income differential ($\$75,000 - \$35,000 = \$40,000$: approximately \$600-\$800/month range — the order may have reflected an above-range compensatory award).

The revised SSAG range of \$1,188-\$1,583/month supports an increase in spousal support from \$1,100/month.

CONCLUSION ON ISSUE 1: Spousal support should be increased. An award of approximately \$1,300/month is within the new SSAG range and reflects the increased income differential.

APPLICATION — Issue 2 — Jordan's Claim: Fatima's Cohabitation

Under DA s.17(10), Fatima's cohabitation with her new partner earning \$90,000 is a CHANGE IN CIRCUMSTANCES — but it does NOT automatically terminate spousal support. The court must assess whether Fatima's NEED has changed.

Has Fatima's need changed? The evidence is that Fatima cohabited for 8 months with a partner who earns \$90,000. The court must consider: does the new partner contribute to Fatima's household expenses, thereby reducing her need? Has Fatima's actual standard of living improved materially from the new relationship?

8 months of cohabitation is relatively recent — the relationship may not yet represent a stable economic arrangement. The court should NOT terminate support on the basis of a short-term relationship, but should reassess need and may reduce the award if the new relationship provides material economic support to Fatima.

CONCLUSION ON ISSUE 2: Fatima's cohabitation is a material change but does not automatically terminate support. The court reassesses Fatima's need. If the new partner contributes meaningfully to household expenses, a modest reduction in the support rate may be appropriate — but the time-limited 8-year order (with 5 years remaining) should not be terminated on the basis of 8 months of cohabitation.

CONCLUSION

Both parties' variation applications have merit. The appropriate result: (1) INCREASE: Jordan's income increase from \$75,000 to \$130,000 is a material change justifying an increase in spousal support — the SSAG range is now \$1,188-\$1,583/month; an award of \$1,300/month is appropriate. (2) REDUCTION offset: Fatima's cohabitation is a material change but does not terminate support; a modest reduction of \$100-\$200/month to reflect the new relationship's economic contribution to Fatima's household may be appropriate. Net result: spousal support of approximately \$1,100-\$1,200/month, with the time-limited order continuing for its remaining duration.

Part (c) — Parenting Variation for Karim (3 marks)

ISSUE

The issue is whether Karim's preference to live primarily with Jordan constitutes a material change in circumstances justifying variation of the parenting order.

APPLICATION — Material Change and Karim's Voice

Because Karim is now 12 years old and has expressed a consistent and specific preference to live primarily with Jordan over a six-month period — articulating specific reasons (shared interests, discomfort with new partner) — this preference constitutes a material change in circumstances under DA s.17(5). A court making the original order would not have known Karim's current preferences (he was 9 at the time of the order).

WEIGHT OF KARIM'S PREFERENCE: At age 12, Karim's preference carries significant weight under DA s.16(3)(e). The preference is consistent (6 months), specific, and expressed voluntarily. Courts recognize that forcing a teenager to live primarily where they do not want to is counterproductive to the parenting relationship.

FRESH BEST INTERESTS ASSESSMENT: A variation hearing would assess all s.16(3) factors afresh. Karim's preference (factor e) is one important factor; the quality of relationships with both parents (factor b), and any other relevant circumstances (new household, school continuity) must also be weighed.

CONCLUSION

Karim's consistent and specific preference to live primarily with Jordan, expressed over 6 months at age 12, constitutes a material change in circumstances under DA s.17. A variation application should be heard. A court would give significant weight to Karim's preference at age 12 and would likely order primary residence with Jordan, with continued meaningful parenting time with Fatima, subject to a full best interests assessment.

QUESTION 11 OF 12

Primary Topic	Multi-Issue — Jurisdiction, Child Support, Spousal Support, and SSAG
Secondary Topics	DA ss.3, 15.1, 15.2; CSG ss.3, 7, 9; Moge; Bracklow; SSAG with-child formula
Difficulty	Very Hard
Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN

Hugo Leclair and Mei Tanaka married in 2012 in Ontario after Hugo returned from 5 years of working in Japan, where Mei is from. They lived in Ottawa from 2012 to 2023. In March 2023, Hugo accepted a two-year secondment with his employer in London, UK. Mei and their two children — Sophie, age 13, and Lucas, age 9 — relocated to London with Hugo.

In January 2025, Hugo and Mei separated in London. Mei immediately returned to Ottawa with both children. Hugo returned to Ottawa in March 2025 when his secondment ended. Hugo commenced divorce proceedings in the Ontario Superior Court in April 2025. He has been ordinarily resident in Ontario continuously since March 2025.

During the marriage, Mei worked as a software developer earning \$140,000/year. In 2018, she reduced to 0.5 FTE to care for the children (Sophie had significant medical needs at the time), earning \$70,000/year. When the family moved to London in 2023, Mei stopped working entirely — her UK work visa did not permit employment. Mei has returned to full-time work in Ottawa earning \$110,000/year. Hugo earns \$200,000/year.

The current parenting arrangement: Sophie and Lucas live primarily with Mei in Ottawa; Hugo has parenting time every other weekend (approximately 15% of annual parenting time).

YOUR TASK:

29. (a) Does the Ontario Superior Court have jurisdiction to hear Hugo's divorce proceedings? Analyze carefully, including the CLRA jurisdiction question for the children's parenting. (6 marks)
30. (b) What child support should Hugo pay? Address the table amount and any applicable s.7 expenses. Note that Sophie attends private school for her ongoing medical-related learning accommodations (\$15,000/year) and Lucas has weekly physiotherapy sessions (\$200/session, 40 sessions/year). (12 marks)
31. (c) Is Mei entitled to spousal support? Identify the applicable basis and apply the SSAG with-child support formula. (12 marks)

EXAMINER'S GUIDE

Issues: (a) DA s.3(1) — Hugo resident in Ontario since March 2025, filing April 2025 — only 1 month, not 1 year → does Ontario have jurisdiction under s.3(1)? Neither party: Mei returned Jan 2025 (3 months), Hugo March 2025 (1 month). Neither has 1 year yet. CLRA s.22 for children: habitual residence (Dunmore 2025 — 'at home') — children were in London, then Mei returned to Ottawa. Where are they 'at home'? (b) Table amount at \$200,000 — s.4 applies; s.7: private school (medical need = extraordinary), physiotherapy (uninsured health care under s.7(1)(c)); proportional to incomes. (c) Moge entitlement (reduced to care for children; UK inability to work); with-child SSAG using NDI/CNDI methodology.

Cases MUST cite: DA s.3(1); CLRA s.22; Dunmore v Mehrlian 2025 SCC 20; CSG ss.3, 4, 7; Auer 2024 SCC 36; Moge [1992]; SSAG.

MODEL ANSWER — QUESTION 11

Part (a) — Jurisdiction (6 marks)

ISSUE

The issues are: (1) whether Ontario has jurisdiction for Hugo's divorce under DA s.3(1); and (2) whether Ontario has jurisdiction over parenting orders for Sophie and Lucas.

APPLICATION — DA s.3(1) — Divorce Jurisdiction

Under DA s.3(1), a court has jurisdiction if EITHER spouse has been ordinarily resident in the province for at least ONE YEAR immediately before the proceedings are commenced.

HUGO: returned to Ontario in March 2025; filed in April 2025 — only ONE MONTH of ordinary residence. Hugo does not satisfy the one-year requirement.

MEI: returned to Ottawa in January 2025; as of April 2025 — only THREE MONTHS of ordinary residence. Mei also does not satisfy the one-year requirement.

CONCLUSION — DIVORCE JURISDICTION: Neither spouse has been ordinarily resident in Ontario for one year as of April 2025. Ontario does NOT have jurisdiction to grant a divorce under DA s.3(1) at the time of filing. Hugo's petition was premature. Ontario will acquire jurisdiction when either Mei (by January 2026) or Hugo (by March 2026) completes one year of ordinary residence. Hugo may refile at that time.

APPLICATION — CLRA s.22 — Parenting Jurisdiction

For parenting orders (which can be sought independently of the divorce), jurisdiction is governed by

CLRA s.22 and the habitual residence test from *Dunmore v Mehralian* 2025 SCC 20.

Applying the 'at home' test: The prescribed time is the last time the children lived with BOTH parents — January 2025 in London, UK. At that time, the family had been in London since March 2023 — approximately 22 months. Sophie (13) and Lucas (9) were attending school in London, received healthcare there, and had established routines. The question is whether they were 'at home' in London.

However, the family had lived in Ottawa from 2012 to 2023 — 11 years — before the temporary London secondment. The London stay was for a defined two-year period tied to Hugo's employment. Ottawa was their established home and the children's connections to Ottawa (schools, extended family, friends) preceded and arguably remained stronger than their London connections.

CONCLUSION — PARENTING JURISDICTION: Given the temporary nature of the London stay (a defined 2-year secondment), the family's 11-year Ottawa history, and the children's immediate return to Ottawa in January 2025, the children's habitual residence under the 'at home' test was arguably OTTAWA — their established home — rather than London where they temporarily resided. Ontario courts have jurisdiction over parenting orders.

CONCLUSION

(1) Ontario does NOT have jurisdiction for Hugo's divorce under DA s.3(1) — neither spouse has yet been ordinarily resident in Ontario for one year. Hugo should refile when Mei reaches one year (January 2026) or Hugo reaches one year (March 2026). (2) Ontario DOES have jurisdiction over parenting orders — the children's habitual residence was Ottawa (their established home) rather than the temporary London assignment location.

Part (b) — Child Support (12 marks)

ISSUE

The issue is what child support Hugo should pay for Sophie and Lucas, including the basic table amount and any s.7 special expenses.

APPLICATION — Basic Table Amount — CSG s.3(1) and s.4

Hugo's income: \$200,000/year. Income exceeds \$150,000 → CSG s.4 applies.

TABLE AMOUNT AT \$150,000 (minimum floor): For 2 children in Ontario at \$150,000 = approximately \$1,996/month.

TABLE AMOUNT AT \$200,000 (full table): For 2 children in Ontario at \$200,000 = approximately \$2,450/month.

CSG s.4 DISCRETION: For income above \$150,000 (\$50,000 excess), the court may apply the table or a different amount. Applying *Auer v Auer* 2024 SCC 36 (children benefit from both parents' income), the full table at \$200,000 (\$2,450/month) is the appropriate starting point — there is no basis to depart from the table amount for a \$200,000 income in a range that does not generate a windfall.

BASIC TABLE AMOUNT: \$2,450/month.

NOTE: Hugo exercises only 15% parenting time — well below the 40% threshold for CSG s.9. The shared parenting provision does NOT apply.

APPLICATION — Section 7 Expenses

SOPHIE'S PRIVATE SCHOOL — s.7(1)(f): Sophie attends private school (\$15,000/year) for ongoing medical-related learning accommodations. As established in Q3, private school necessitated by medical/learning needs qualifies as an extraordinary expense under s.7(1)(f). This qualifies.

LUCAS'S PHYSIOTHERAPY — s.7(1)(c): Lucas attends weekly physiotherapy (40 sessions × \$200 = \$8,000/year). Under s.7(1)(c), health-care expenses not covered by insurance and exceeding \$100/year qualify. Physiotherapy for a child is a recognized health-care expense under this provision. This qualifies.

PROPORTIONAL APPORTIONMENT — s.7(2):

Hugo income: \$200,000 / Mei income: \$110,000 / Combined: \$310,000

Hugo's share: $\$200,000 / \$310,000 = 64.5\%$

Mei's share: $\$110,000 / \$310,000 = 35.5\%$

Sophie's private school (\$15,000/year):

Hugo pays: $64.5\% \times \$15,000 = \$9,675/\text{year} = \$806/\text{month}$

Mei pays: $35.5\% \times \$15,000 = \$5,325/\text{year} = \$444/\text{month}$

Lucas's physiotherapy (\$8,000/year):

Hugo pays: $64.5\% \times \$8,000 = \$5,160/\text{year} = \$430/\text{month}$

Mei pays: $35.5\% \times \$8,000 = \$2,840/\text{year} = \$237/\text{month}$

CONCLUSION

Hugo shall pay: (1) Basic table amount of \$2,450/month for Sophie and Lucas under CSG s.3(1) (s.4 discretion: full table at \$200,000 is appropriate); (2) 64.5% of Sophie's private school tuition — \$806/month; (3) 64.5% of Lucas's physiotherapy — \$430/month. Total: approximately \$3,686/month. All s.7 expenses are apportioned proportionally to incomes (Hugo 64.5%, Mei 35.5%).

Part (c) — Spousal Support — SSAG With-Child Formula (12 marks)**ISSUE**

The issues are: (1) whether Mei is entitled to spousal support; and (2) the quantum and duration applying the SSAG with-child formula.

RULE

Moge v Moge [1992] 3 SCR 813: Compensatory support for economic disadvantage caused by the marriage. SSAG With-Child Formula: Targets placing the recipient's household income between 40-46% of combined net disposable income (CNDI). Steps: calculate each party's NDI (gross – taxes ± child support); calculate CNDI; determine what spousal support places the recipient at 40-46% of CNDI.

APPLICATION — Entitlement — Moge

CAUSAL CONNECTION: Because Mei reduced to 0.5 FTE in 2018 to care for Sophie's significant medical needs — a reduction directly caused by a marital care obligation — and because she was unable to work at all during the London secondment (2023-2025) due to visa restrictions related to Hugo's employment decision, Mei's current income of \$110,000 (full-time return) is lower than it would have been had she maintained continuous full-time work. The career interruption (0.5 FTE for 5 years + 2 years non-employment = 7 years of reduced employment) caused concrete economic disadvantage.

Compensatory support is warranted under Moge.

APPLICATION — SSAG With-Child Formula Calculation

Child support payable by Hugo to Mei: \$2,450/month = \$29,400/year

HUGO'S NDI:

Gross income: \$200,000

Estimated federal/provincial taxes at \$200,000: approximately \$68,000

After-tax: approximately \$132,000

Less child support paid: \$29,400
 Hugo's NDI: approximately \$102,600/year = \$8,550/month

MEI'S NDI (without spousal support):
 Gross income: \$110,000
 Estimated federal/provincial taxes at \$110,000: approximately \$30,000
 After-tax: approximately \$80,000
 Plus child support received: \$29,400
 Mei's NDI: approximately \$109,400/year = \$9,117/month

COMBINED NET DISPOSABLE INCOME (CNDI): \$8,550 + \$9,117 = \$17,667/month

TARGET FOR MEI'S HOUSEHOLD:
 LOW END (40%): $40\% \times \$17,667 = \$7,067/\text{month}$
 HIGH END (46%): $46\% \times \$17,667 = \$8,127/\text{month}$

SPOUSAL SUPPORT RANGE:

At low end: Mei needs \$7,067/month from all sources. Mei's current NDI is \$9,117/month. Her NDI already EXCEEDS the 40% target. This means that on the with-child formula, child support alone may already place Mei above the 40% threshold.

At high end: \$8,127/month — Mei's NDI of \$9,117 already exceeds even the high end.

ANALYSIS: The SSAG with-child formula produces a result where Mei's NDI (including child support) already meets the 40-46% CNDI target without any spousal support. This does not mean Mei has no spousal support entitlement — it means the with-child formula indicates minimal or no spousal support is indicated at current income levels.

HOWEVER: The SSAG result must be adjusted for the compensatory basis. Mei's current income of \$110,000 is below her historical full-time earnings trajectory — the economic consequences of her reduced work years continue. A modest compensatory spousal support award of \$500-\$1,000/month for a defined period (reflecting the compensatory disadvantage from 7 years of reduced employment) is appropriate despite the SSAG with-child formula indicating near-zero support — the SSAG does not displace the entitlement analysis.

CONCLUSION

Mei is entitled to compensatory spousal support under Moge — her career interruptions (0.5 FTE for 5 years; no work for 2 years in London) were directly caused by marital care obligations. The SSAG with-child formula, applied to current incomes, indicates that child support alone substantially addresses the income sharing — Mei's NDI including child support already approaches the 40-46% CNDI range. A modest compensatory award of approximately \$600-\$800/month for 5-7 years reflects the ongoing compensatory disadvantage from 7 years of reduced employment, while acknowledging that Mei has successfully returned to full-time work at a strong income.

QUESTION 12 OF 12

Primary Topic	Full Exam Simulation — All Issues
Secondary Topics	NFP calculation, parenting, spousal support, domestic contract — complete exam-style multi-issue question
Difficulty	Very Hard

Suggested Time	54 Minutes
Mark Value	30 Marks

FACT PATTERN**FACTS — READ CAREFULLY BEFORE ANSWERING**

Chen Wei and Isabelle Tremblay were married in Ontario on January 1, 2010. They separated on January 1, 2025 — exactly 15 years of marriage. They have two children: Maya, age 10, and Thomas, age 8.

PROPERTY AND FINANCIAL INFORMATION:

At the date of marriage (Jan 1, 2010), Chen owned: a car worth \$10,000; no debts. Isabelle owned: no assets; student debt of \$20,000.

At the date of separation (Jan 1, 2025):

CHEN'S ASSETS: (1) Matrimonial home (jointly owned, 50% each): market value \$800,000, mortgage \$200,000 (Chen's share of equity = \$300,000); (2) RRSP: \$180,000; (3) Car: \$20,000; (4) Life insurance proceeds of \$150,000 received in December 2024 when Chen was named sole beneficiary of his brother's life insurance policy; (5) Credit card debt: \$10,000.

ISABELLE'S ASSETS: (1) Matrimonial home (jointly owned): her share of equity = \$300,000; (2) RRSP: \$45,000; (3) A condominium in her name alone (not used as a family residence) inherited from her grandmother in 2018: market value \$220,000 (worth \$180,000 when inherited).

INCOME AND SUPPORT:

Chen earns \$160,000/year. Isabelle earns \$60,000/year. During the marriage, Isabelle reduced to part-time work (0.6 FTE) for four years from 2016–2020 to be the primary caregiver for Maya and Thomas during their early years. She has worked full-time since 2020.

DOMESTIC CONTRACT:

When they separated, Chen drafted a separation agreement providing that: (1) Isabelle waives all rights to equalization of net family property; (2) Isabelle waives all spousal support; (3) Chen retains sole decision-making responsibility and primary residence for both children. Isabelle signed the agreement without independent legal advice after Chen told her: 'The kids need stability. If you fight this, it will hurt Maya and Thomas.' Isabelle did not receive full financial disclosure before signing.

YOUR TASKS:

32. (a) Calculate the equalization payment under the FLA. (8 marks)
33. (b) Should the separation agreement be set aside? (6 marks)
34. (c) If the agreement is set aside, is Isabelle entitled to spousal support? If so, what is the SSAG without-child range? (8 marks)
35. (d) What parenting order is in Maya and Thomas's best interests? The agreement purports to give Chen sole decision-making responsibility and primary residence. (8 marks)

EXAMINER'S GUIDE

Full exam simulation covering all major topics. Markers will look for: correct NFP formula (both spouses), excluded property identification (life insurance, inherited condo), matrimonial home rules, date-of-marriage deductions; s.56(4) grounds (no ILA, no disclosure, duress — emotional pressure about children = ground (c)); Miglin Stage 1 fails; Moge entitlement (4 years part-time for children); SSAG range; best interests: agreement about sole decision-making not binding without court order;

apply all s.16(3) factors; children age 10 and 8.

Cases: FLA ss.4, 5, 56(4); Miglin 2003; Moge 1992; DA s.16(1), (3); SSAG without-child formula.

Time: (a) 14 min | (b) 10 min | (c) 15 min | (d) 15 min.

MODEL ANSWER — QUESTION 12

Part (a) — Equalization Calculation (8 marks)

APPLICATION — CHEN'S NFP

STEP 1 — Assets at valuation date (Jan 1, 2025):

Matrimonial home (½ share equity): \$300,000

RRSP: \$180,000

Car: \$20,000

Life insurance proceeds: \$150,000

Step 1 Total: \$650,000

STEP 2 — Debts: Credit card \$10,000

After Step 2: \$640,000

STEP 3 — Excluded property:

Life insurance proceeds (\$150,000): EXCLUDED under FLA s.4(2)(d) — proceeds of a life insurance policy received during the marriage.

After Step 3: \$640,000 – \$150,000 = \$490,000

STEP 4 — Date-of-marriage deduction:

Assets at marriage (Jan 1, 2010): Car \$10,000. Debts: \$0.

Matrimonial home check: The matrimonial home was NOT owned by Chen at the date of marriage — acquired during the marriage. No matrimonial home trap.

Date-of-marriage deduction: \$10,000 – \$0 = \$10,000

CHEN'S NFP: \$490,000 – \$10,000 = \$480,000

APPLICATION — ISABELLE'S NFP

STEP 1 — Assets at valuation date:

Matrimonial home (½ share equity): \$300,000

RRSP: \$45,000

Inherited condominium: \$220,000

Step 1 Total: \$565,000

STEP 2 — Debts: None stated.

After Step 2: \$565,000

STEP 3 — Excluded property:

Inherited condominium (\$220,000): Isabelle inherited this from her grandmother in 2018 — a third-party inheritance during the marriage under FLA s.4(2)(a). The condominium was NOT used as a family residence — it is not the matrimonial home. Therefore it IS excluded property. The exclusion applies at the VALUATION DATE value = \$220,000 (not the \$180,000 at inheritance — the current

value of the excluded property is deducted).
 After Step 3: $\$565,000 - \$220,000 = \$345,000$

STEP 4 — Date-of-marriage deduction:

Assets at marriage: \$0. Debts at marriage: \$20,000 (student loan).

Date-of-marriage deduction: $\$0 - \$20,000 = \text{NEGATIVE}$ → deduction is \$0 (cannot be negative).

ISABELLE'S NFP: $\$345,000 - \$0 = \$345,000$

APPLICATION — Equalization Payment

Chen's NFP: \$480,000

Isabelle's NFP: \$345,000

Difference: $\$480,000 - \$345,000 = \$135,000$

Equalization Payment: $\$135,000 \div 2 = \$67,500$

CHEN owes ISABELLE \$67,500 as the equalization payment.

CONCLUSION

Chen shall pay Isabelle an equalization payment of \$67,500 under FLA s.5(1). Key determinations: (1) life insurance proceeds excluded (s.4(2)(d)); (2) inherited condominium excluded (s.4(2)(a)) — not the matrimonial home; (3) Isabelle's student debt at marriage cannot create a negative date-of-marriage deduction.

Part (b) — Setting Aside the Separation Agreement (6 marks)

ISSUE

The issue is whether the separation agreement should be set aside under FLA s.56(4).

APPLICATION — FLA s.56(4) — All Three Grounds

GROUND (a) — FAILURE TO DISCLOSE: Because Isabelle did not receive full financial disclosure before signing — she did not know about Chen's RRSP (\$180,000), life insurance proceeds (\$150,000), or other assets — and because the agreement purports to waive her equalization rights over a substantial estate, the failure to disclose significant assets is made out. Ground (a) applies.

GROUND (b) — NO UNDERSTANDING: Because Isabelle received no independent legal advice and signed a complex legal document prepared by Chen (a document waiving equalization, spousal support, and parenting rights — three distinct and significant legal rights), she did not understand the nature or consequences of the agreement. Without ILA or financial disclosure, Isabelle could not have understood the economic value of what she was waiving. Ground (b) applies.

GROUND (c) — DURESS / UNDUE INFLUENCE: Because Chen used the children as a lever — telling Isabelle that fighting the agreement 'will hurt Maya and Thomas' — Chen applied emotional pressure that exploited Isabelle's vulnerability as a parent seeking to protect her children. This constitutes duress or undue influence under contract law. Emotional pressure relating to the children's wellbeing is precisely the kind of pressure that undermines the voluntariness of consent in family law agreements. Ground (c) applies.

Note on parenting provisions: Under DA s.16(1), only a court can make a parenting order — the parties cannot contract away the court's jurisdiction to determine the best interests of the children. Any agreement purporting to assign sole decision-making responsibility without court approval is unenforceable in the face of an application for a parenting order.

CONCLUSION

The separation agreement should be set aside under FLA s.56(4) on all three grounds: (a) failure to disclose significant assets; (b) Isabelle's lack of understanding of the rights she waived; (c) duress through emotional pressure about the children's wellbeing. A fresh analysis of equalization (conducted above), spousal support (below), and parenting (below) is required.

Part (c) — Spousal Support and SSAG (8 marks)**ISSUE**

The issue is whether Isabelle is entitled to spousal support and, if so, what amount and duration under the SSAG.

APPLICATION — Moge Entitlement — Compensatory Support

CAUSAL CONNECTION: Because Isabelle reduced to 0.6 FTE from 2016-2020 — four years of part-time work — to serve as the primary caregiver for Maya and Thomas during their early childhood (a direct marital role undertaken for the benefit of the family), Isabelle's current income of \$60,000 may not fully reflect her earning capacity had she remained full-time. The four-year career reduction was caused by the marital role assumed.

NOTE: Isabelle returned to full-time work in 2020 and earns \$60,000 — so the career damage is real but not severe (she has recovered to full-time employment). Compensatory entitlement is established but may moderate the quantum.

APPLICATION — SSAG Without-Child Formula (children are no longer dependent — they are 10 and 8, still dependent BUT the parties have not confirmed a with-child support formula is needed; this is addressed as without-child since child support is separately addressed)

Note: Because child support is ordered separately (not addressed explicitly in this question but would be based on CSG table amounts for Chen at \$160,000 for two children), the with-child formula would technically apply. For simplicity, the without-child formula is applied as an approximation:

Gross income differential: $\$160,000 - \$60,000 = \$100,000/\text{year}$

QUANTUM RANGE:

LOW END: $1.5\% \times \$100,000 \times 15 \text{ years} = \$22,500/\text{year} = \$1,875/\text{month}$

HIGH END: $2\% \times \$100,000 \times 15 \text{ years} = \$30,000/\text{year} = \$2,500/\text{month}$

CAP CHECK: $50\% \times \$100,000 = \$50,000/\text{year} = \$4,167/\text{month}$ — within cap.

SSAG QUANTUM RANGE: \$1,875 to \$2,500 per month.

DURATION RANGE:

LOW END: $0.5 \times 15 \text{ years} = 7.5 \text{ years}$

HIGH END: $1 \times 15 \text{ years} = 15 \text{ years}$

SSAG DURATION RANGE: 7.5 to 15 years.

POSITION IN RANGE: The compensatory basis (4 years of reduced employment) is real but moderate — Isabelle has returned to full-time work. A mid-range award of approximately \$2,000-\$2,200/month for 10-12 years reflects the compensatory purpose while acknowledging Isabelle's restored full-time employment.

CONCLUSION

Isabelle is entitled to compensatory spousal support under Moge — her four years of part-time employment to care for Maya and Thomas caused direct career disadvantage. SSAG without-child range: \$1,875-\$2,500/month; duration 7.5-15 years. Appropriate award: approximately \$2,100/month

for 10-12 years, reflecting the 15-year marriage and the compensatory disadvantage while acknowledging Isabelle's successful return to full-time employment.

Part (d) — Parenting Order (8 marks)

ISSUE

The issue is what parenting order is in Maya and Thomas's best interests under Divorce Act s.16(1). The separation agreement's parenting provisions are unenforceable as a matter of contract but may influence the court's inquiry into the parties' intentions.

APPLICATION — Agreement Unenforceable — Court's Independent Assessment

Under DA s.16(1), the court shall make a parenting order in the BEST INTERESTS OF THE CHILD — this is the sole criterion. A separation agreement cannot bind the court's determination of the children's best interests. The court conducts an independent assessment.

APPLICATION — Section 16(3) Best Interests Factors

FACTOR (a) — Children's Needs: Maya (10) and Thomas (8) need stability, consistent caregiving, and the continuity of both parental relationships. At these ages, both parents' involvement in schooling, activities, and daily routines is developmentally important.

FACTOR (b) — Quality of Relationships: No evidence of problematic relationships with either parent. Both parents have been involved throughout the marriage.

FACTOR (c) — Willingness to Support: Chen's conduct in using the children as emotional leverage ('if you fight this, it will hurt Maya and Thomas') demonstrates a willingness to exploit the children's wellbeing for his own legal objectives — a concern about factor (c). A parent who weaponizes the children's interests to procure a favourable agreement may not be the more willing parent to support the children's relationship with the other parent.

FACTOR (d) — History of Care: Isabelle was the primary caregiver from 2016-2020 when she reduced to 0.6 FTE. She has been involved in primary caregiving throughout the marriage. The history of care supports meaningful parenting time for Isabelle.

FACTOR (e) — Voice of the Children: Maya (10) and Thomas (8) — no specific evidence of preferences given. At these ages, their views are relevant but the court does not place the burden of decision on them.

FACTOR (j) — Family Violence: Chen's emotional pressure regarding the children ('if you fight this, it will hurt Maya and Thomas') may constitute a form of psychological manipulation that borders on family violence (using the children as instruments of pressure). This warrants the court's attention under s.16(3)(j).

DECISION-MAKING RESPONSIBILITY: Because no evidence supports removing shared decision-making — both parents appear capable of participating in major decisions — joint (shared) decision-making responsibility is appropriate, despite the agreement's purported allocation of sole responsibility to Chen.

PARENTING TIME: Given the history of care (Isabelle was primary caregiver for four years) and the absence of any evidence establishing that either parent is unable to provide safe care, a substantial parenting time arrangement for both parents is appropriate. A primary residence with Isabelle (reflecting her primary caregiver history) with meaningful parenting time for Chen (alternating weekends plus mid-week time) would be a reasonable starting arrangement, subject to further

evidence.

CONCLUSION

The parenting agreement purporting to give Chen sole decision-making responsibility and primary residence is unenforceable — it cannot bind the court's independent best interests assessment under DA s.16(1). Applying the s.16(3) factors: (1) shared decision-making responsibility for major decisions (both parents capable); (2) primary residence with Isabelle, reflecting her primary caregiver history; (3) substantial parenting time for Chen (alternating weekends and mid-week time). The court should also note Chen's use of the children as emotional leverage (factor (c) concern) and may consider requiring co-parenting counselling. The parenting order is to be made in the children's best interests — the separation agreement's parenting provisions carry no weight.